

Block

ASPEC

Case

Framing---2NC

Use util---only non arbitrary metric since alternatives value some lives over others which is violent. Extinction has to outweigh the AFF ince it's the evisceration of all human morality.

Normative qualia are the only way to explain the difference between good and bad experiences---those verify utilitarianism.

Hewitt '8 [Sharon; September; Ph.D. in philosophy from New York University; New York University ProQuest Dissertations Publishing, "Normative qualia and a robust moral realism," no. 3329889]

Rather than claiming that normative phenomenology reveals to us the goodness or badness of actions or of physical objects or states of affairs, I claim that it reveals to us first and foremost the intrinsic goodness and badness of the phenomenology itself. I claim that intrinsic goodness and badness are phenomenal qualities of experience, and that it is facts about these qualities of experience which constitute all the normative facts there are. On my view, the intrinsic goodness of a state of affairs depends solely on the amounts of positive and negative experience had by all of the conscious beings that are part of that state of affairs, and on how strongly positive and negative their experiences are. The goodness of an object, an action, or a disposition depends wholly on its conduciveness to bringing about intrinsically good states of affairs defined in this way.

I propose that objectively good and bad phenomenology is found within our common experiences of pleasure and pain, liking and disliking, happiness and depression, peacefulness and fear, and meaningfulness and despair. I propose that in all of our everyday experiences of pleasure, of liking something, of being happy, of being peaceful, and of feeling that life is meaningful, there is a common positive feeling: a feeling of goodness tout court. What we are experiencing, I propose, is the most basic, elemental type of positive value. We experience goodness directly and immediately as one of the defining properties of these feelings. A feeling that does not feel good cannot qualify as pleasure. Nor can it qualify as happiness. Peacefulness without its positive aspect is better described as boredom. Defining pleasure, happiness, and peacefulness requires referring to some positive quality present in the experiences. And it is this positive phenomenal quality that I propose is identical with the property of intrinsic goodness.

On the other hand, in experiences of pain, of disliking something, of being depressed, of being afraid, and of feeling hopeless or despairing, I believe we feel something that is the direct opposite of this quality. In all of these latter feelings, there is a common element of negativity. I submit that, when we have these negative feelings, we directly experience intrinsic badness.

Utilitarianism is the most compassionate and by definition must account for every being.

MacAskill '23 [William, Dirk Meissner, and Richard Yetter Chappell; 2023; associate professor in Philosophy and Research Fellow at the Global Priorities Institute at the University of Oxford; Distinguished Professor of economics at the National Research University; Associate Professor of

Philosophy at the University of Miami, Ph.D. in philosophy from Princeton University; Utilitarianism, "Introduction to Utilitarianism," www.utilitarianism.net/introduction-to-utilitarianism]

What Is Utilitarianism?

We can define utilitarianism in simple terms:

Utilitarianism is the view that one ought always to promote overall well-being.

The core idea is that we should want all lives to go as well as possible⁹ with no-one's well-being counting for more or less than anyone else's.

Sometimes philosophers talk about "welfare" or "utility" rather than "well-being", but these words are typically used to mean the same thing.¹⁰ (Others sometimes use "well-being" and "happiness" interchangeably, though we'll take "happiness" to be a narrower concept.)¹¹

Utilitarianism is most commonly applied to evaluate the rightness of actions, but the theory can also evaluate other things, like rules, policies, motives, virtues, and social institutions. It is perhaps unfortunate that the clinical-sounding term "utilitarianism" caught on as a name, especially since in common speech the word "utilitarian" is easily confused with joyless functionality or even outright selfishness.

All ethical theories in the utilitarian family share four defining elements: consequentialism, welfarism, impartiality, and aggregationism, which we'll define as follows:

Consequentialism: one ought always to promote good outcomes.

Welfarism: the value of an outcome is wholly determined by the well-being of the individuals in it.

Impartiality: a given quantity of well-being is equally valuable no matter whose well-being it is.

Aggregationism: the value of an outcome is given by the sum value of the lives it contains.¹²

Utilitarianism's rivals are theories that deny one or more of the above four elements. For example, they might hold that actions can be inherently right or wrong regardless of their consequences, or that things other than well-being can contribute to an outcome's value, or that morality allows us to be partial towards our friends and families, or that we should do whatever will most benefit the worst-off member of society.

Roadmap

We cover the four elements of utilitarianism in greater depth, along with further theoretical distinctions, in Chapter 2: Elements and Types of Utilitarianism.

Chapter 3 explains reflective equilibrium as a moral methodology, and presents several arguments for utilitarianism (and similar consequentialist views) over competing approaches to ethics. This includes discussion of the veil of ignorance, the expanding moral circle, and the argument that utilitarianism offers an especially compelling account of what fundamentally matters. This chapter also explains the paradox of deontology, evolutionary debunking arguments, and other objections to non-consequentialist ethics.

Specific theories of well-being and of population ethics are explored in Chapters 4 and 5, respectively. While utilitarianism is often associated with hedonism about well-being and the total view of population ethics (a combination known as classical utilitarianism), there are other options that are also worth considering. It's especially worth bearing in mind that objections to hedonism or to the total view may yet leave other forms of utilitarianism untouched.

Chapter 6 and our supplemental article Acting on Utilitarianism explore the practical applications of utilitarianism, and its implications for how we should live our lives. We argue that, in practice, a utilitarian should try to do as much good as possible whilst still abiding by commonsense moral virtues like integrity, trustworthiness, and law-abidingness, in order to advance social cooperation and mitigate the downside risk of miscalculation.

Chapter 7 examines how robust these practical recommendations are to various departures from strict utilitarian theory. While some alternative theories may yield radically divergent practical implications, we argue that a wide range of reasonable views ultimately converge on the core practical recommendation of utilitarian ethics—namely, to use a significant fraction of your time and/or money to help others, and to try to do so as effectively as possible, without violating commonsense moral constraints.

Prominent objections to utilitarianism are addressed in chapter 8. We introduce a “toolkit” of general maneuvers available to utilitarians to address a wide range of objections, and then show how this toolkit can be used to address concerns about rights, demandingness, cluelessness, and more.

Conclusion

What matters **most** for utilitarianism is improving the **well-being** of **all individuals**, regardless of their **gender**, **race**, **species**, or their **geographical** or **temporal location**.

We should only use emotional intuition to determine the morality of an action---it's the **most reliable** ethical metric.

Sinhababu '15 [Neil; November 21; Ph.D. in Philosophy at the National University of Singapore; PhilArchive, “The Epistemic Argument for Hedonism,” <https://philarchive.org/rec/SINTEA-3>]

Hedonists can accept synthetic a posteriori identity relations between moral properties and natural properties, following Peter Railton.³⁴ Just as electrolyzing water suggests that water is H₂O, the argument from disagreement and **phenomenal introspection** together **suggest** that **goodness** is **pleasure**. In both cases, empirical evidence suggests property identities. While identity permits moral properties to be where phenomenal introspection could find them, it doesn't guarantee this. If X and Y are identical as a matter of synthetic a posteriori necessity, one can know that X is present without being in position to know that Y is present. The advantage of synthetic reductive naturalism is simply that it puts moral properties in the natural world where they might be empirically accessible. To empirically determine whether phenomenal introspection actually reveals moral properties to apply to pleasure, we should introspect and see, as some philosophers do. In “The Appeal of Utilitarianism,” Robert Shaver writes that “The **goodness or badness** of pleasures or pains is **evident** from the **point of view** of anyone **capable of experience**” (248).³⁵ In Normative Ethics, Shelly Kagan similarly notes that “The value of pleasure and the disvalue of pain seem virtually self-evident to anyone experiencing them” (30).³⁶ These philosophers seem to be detecting moral properties in experience, one of the many places where synthetic reductionism allows them to be. I'll explain how the structure of moral concepts allows them to do this.

Experientialism, which I defend in Humean Nature, is an analysis of moral concepts in terms of what moral feelings objectively represent. Feelings are the experienced effects of emotional dispositions, distinguished from the motivational and physiological effects. Moral feelings represent the world as having moral properties, much as color experience represents the world as having color properties. Experiencing guilt about something you did is feeling that it's wrong, much as experiencing blueness while looking at the sky is seeing it as blue. Here are some experientialist analyses of moral concepts:

TABLE OMITTED

Experientialism doesn't connect moral concepts with motivation or reasons. This makes it fully externalist, like the views of Railton and many other naturalists. It gives moral concepts more content than externalism often does by connecting them with what feelings represent. Saying that war is bad is saying that horror and sorrow objectively represent its moral value.

What does experientialism say about moral properties and how we represent them? It demands that moral judgments have objective content, requiring that any moral properties be objective. Apart from that, it doesn't settle the nature of moral properties. They could be nonnatural, natural, or nonexistent. It also leaves open how moral feelings might represent things. Perhaps we represent these properties via non-natural reference magnets, or via rigid designation and a causal theory of reference. The answers to these questions are synthetic, so they aren't in the experientialist conceptual analysis.

My own answer to these questions is that moral feelings represent natural properties in virtue of shared phenomenal character, much as empathy represents how others feel. If moral feelings represent moral properties via this kind of empathic representation, the hedonic character of moral feelings lets them represent hedonic properties. Then the moral value of pleasure can be detected in introspection. A defense of this view would outlast my readers' patience. So the rest of this section just states the view, leaving a defense for another time.

Some empathic experiences represent the experiences of those we empathize with in virtue of shared phenomenal character. If my friend feels sad and I empathically feel sad as I see her, I represent her feelings accurately. Empathy lets me know how she feels. But if it she's actually

happy and I feel sad for her, my experience misrepresents her feelings. Empathic accuracy is a matter of sharing the phenomenal character of her experience.

The moral feelings invoked by experientialism all have hedonic character. Moral feelings representing positively valenced moral properties like goodness, rightness, and virtue are pleasant. These include hope, delight, pride, approval, and admiration. Moral feelings representing negatively valenced moral properties like badness, wrongness, and vice are unpleasant. These feelings include horror, sorrow, guilt, indignation, contempt, and hatred.

Applying an empathic account of representation to moral feelings suggests a unified hedonistic account of what all moral feelings represent. Positive moral feelings represent increasing hedonic tone and relations to it, while negative moral feelings represent decreasing hedonic tone and relations to it. Moral feelings are isohedonic to what they represent, sharing its hedonic phenomenal character. If you're horrified that war is breaking out, your horror is isohedonic with the suffering that will result. Both include displeasure. Someone who was delighted that war was breaking out wouldn't have feelings isohedonic with this suffering. This is why delight misrepresents the moral character of war. (If it's one of the rare wars that increases the total hedonic tone of reality, delight represents it accurately while horror is inaccurate. Wars that one should feel good about are unusual.) If you admire a leader who makes peace, your pleasant feeling of admiration has a rising hedonic tone matching the hedonic improvement that the leader desired, or perhaps matching the happy consequences that such peacemaking dispositions typically generate.³⁷ The hedonic match between admiration and such desired or typical consequences explain why peacemakers are admirable, or in other words, virtuous

Experientialism and the empathic account of representation entail that we can introspectively detect the moral value of pleasure. Introspection reveals that pleasure objectively shares the pleasant character of hope and delight. According to the empathic account, hope and delight accurately represent things that share their pleasant character. And according to experientialism, things objectively represented by hope and delight have moral value. So introspection shows that pleasure has moral value.

Conclusion

First I argued that we should give up all our moral beliefs, as widespread moral disagreement reveals the general unreliability of the processes producing them. Then I argued that phenomenal introspection reliably informs us of pleasure's goodness. This is a counterexample to premise 4 of the argument from disagreement. Premises 1-3 of that argument still stand, entailing 6: "We should retain only those moral beliefs formed through reliable processes." If phenomenal introspection is the only reliable process for discovering synthetic moral truths, our only moral beliefs should be in the goodness of pleasure and whatever it entails. We should accept a version of ethical hedonism on which we doubt rather than deny nonhedonic moral facts.

This gives hedonists a powerful response to the intuitively compelling counterexamples that lead many to reject their view and believe in a wider range of moral facts. Hedonists can respond that while it intuitively seems that many kinds of moral goodness, badness, rightness, wrongness, virtue, and vice aren't grounded in pleasure's goodness, beliefs in such moral facts are unacceptably likely to be mistaken. Rejecting hedonism is intuitive to us only because we're afflicted by unreliable processes of belief formation. To avoid moral error, we should form moral beliefs only through reliable processes. Then pleasure is the only thing we'll believe is good. The conceptual connections between moral properties of things, states of affairs, actions, and characters provide only reliable route to a full moral theory.

This argument for hedonism won't make hedonism feel right. The epistemic processes that have led so many humans into error make the putative counterexamples to hedonism seem convincing. So hedonism will feel wrong even to hedonists, just as optical illusions look the same even after we know the truth. It feels like this to face our strongest cognitive biases. We should expect to feel this way, given how much moral error has historically existed and how deeply entrenched it is in our moral feelings. Whatever the moral truth is, it would feel wrong to most humans. So it's likely that the moral truth would feel wrong to us.

Methodological advances have contributed to human knowledge in many areas of inquiry. Nothing short of a methodological revolution could take us from the widespread moral error that has afflicted humankind to knowledge of the moral truth. If my arguments are sound, the truth is that pleasure is the only thing we can know to be good. Relying solely on phenomenal introspection to reveal the nature of goodness is the revolution.

Consequentialism first.

Joshua D. **Greene 7**, Psychology Professor at Harvard University, “The Secret Joke of Kant’s Soul,” Chapter 2 of *Moral Psychology Volume 3*, edited by Walter Sinnott-Armstrong, Phil Papers

Missing the Deontological Point

I suspect that rationalist **deontologists** will remain **unmoved** by the arguments presented here. Instead, I suspect, **they will insist** that I have **simply misunderstood** what Kant and like-minded deontologists are all about. **Deontology, they will say**, isn’t about this intuition or that intuition. It’s not defined by its normative differences with consequentialism. Rather, deontology is about taking humanity seriously. Above all else, **it’s about respect for persons**. It’s about treating others as fellow rational creatures rather than as mere objects, about acting for reasons that rational beings can share; and so on (Korsgaard, 1996a, 1996b).

This is, no doubt, how many deontologists see deontology. However, this insider’s view, as I have suggested, may be misleading. **The problem**, more specifically, **is** that **it defines deontology in terms of values that are not distinctively deontological**, though they may appear to be from the inside. Consider the following analogy with religion. When one asks a religious person to explain the essence of his religion, one often gets an answer like this: “It’s about love, really. It’s about looking out for other people, looking beyond oneself. It’s about community, being part of something larger than oneself.” This sort of answer accurately captures the phenomenology of many people’s religion, but it is nevertheless inadequate for distinguishing religion from other things. This is because many, if not most, nonreligious people aspire to love deeply, look out for other people, avoid self-absorption, have a sense of a community, and be connected to things larger than themselves. In other words, secular humanists and atheists can assent to most of what many religious people think religion is all about. From a secular humanist’s point of view, in contrast, what is distinctive about religion is its commitment to the existence of supernatural entities as well as formal religious institutions and doctrines. And they are right. These things really do distinguish religious from nonreligious practices, although they may appear to be secondary to many people operating from within a religious point of view.

In the same way, I believe that most of the standard **deontological/Kantian self-characterizations fail to distinguish deontology from other approaches to ethics**. (See also Kagan, 1997, pp. 70–78, on the difficulty of defining deontology.) It seems to me that **consequentialists, as much as anyone else**, have respect for persons, are **against treating people as mere objects**, wish to act for reasons that rational creatures can share, etc. **A consequentialist respects other persons and refrains from treating them as mere objects by counting every person’s well-being in the decision-making process**. Likewise, **a consequentialist attempts to act according to reasons that rational creatures can share by acting according to principles that give equal weight to everyone’s interests**, i.e., that are **impartial**. This is not to say that consequentialists and deontologists do not differ. They do. It’s just that the real differences may not be what deontologists often take them to be.

What, then, distinguishes deontology from other kinds of moral thought? A good strategy for answering this question is to start with concrete disagreements between deontologists and others (such as consequentialists) and then work backward in search of deeper principles. This is what I have attempted to do with the trolley and footbridge cases and other instances in which deontologists and consequentialists disagree. **If you ask a deontologically minded person why it is wrong to push someone in front of speeding trolley in order to save five others, you will get characteristically deontological answers. Some will be tautological**: “Because it’s murder!” Others will be more sophisticated: “The ends don’t justify the means.” “You have to respect people’s rights.” As we know, **these answers don’t really explain anything, because if you give the same people** (on different occasions) **the trolley case** or the loop case (see earlier discussion), **they will make the opposite judgment, even though their initial explanation** concerning the footbridge case

applies **equally well** to one or **both** of these **cases**. Talk about rights, respect for persons, and reasons we can share are natural attempts to explain, in “cognitive” terms, what we feel when we find ourselves having emotionally driven intuitions that are at odds with the cold calculus of consequentialism. Although these explanations are inevitably incomplete, there seems to be “something deeply right” about them because they give voice to powerful moral emotions. However, as with many religious people’s accounts of what is essential to religion, they don’t really explain what is distinctive about the philosophy in question.

There is no problem of induction outside the academic vacuum---testing empirical claims solves regress.

Henderson 22, Associate Professor, Dept. of Theoretical Philosophy, Univ. of Groningen. (Leah, 11-22-2022, “The Problem of Induction,” Stanford Encyclopedia of Philosophy, <https://plato.stanford.edu/entries/induction-problem/>)

Hume’s **purpose** is clearly **not** to **argue** that we should **not** make **inductive inferences** in **everyday life**, and indeed his whole **method** and **system** of **describing** the **mind** in **naturalistic terms** **depends** on **inductive inferences** through and through. The **problem of induction** then must be seen as a problem that **arises** only at the **level** of **philosophical reflection**.

Another way to mitigate the force of inductive skepticism is to restrict its scope. Karl Popper, for instance, regarded the problem of induction as insurmountable, but he argued that **science** is **not** in fact **based** on **inductive inferences** at all (Popper 1935 [1959]). Rather he presented a **deductivist view** of **science**, according to which it **proceeds** by making **bold conjectures**, and then **attempting to falsify** those conjectures. In the simplest version of this account, **when** a hypothesis makes a prediction which is **found** to be **false** in an experiment, the hypothesis is **rejected** as **falsified**. The **logic** of this procedure is **fully deductive**. The hypothesis **entails** the **prediction**, and the **falsity** of the prediction **refutes** the hypothesis **by modus tollens**. Thus, Popper claimed that science was not based on the extrapolative inferences considered by Hume. The consequence then is that it is not so important, at least for science, if those inferences would lack a rational foundation.

Scenarios and causal analysis using evidence can forecast safe futures.

Scoblic and Tetlock 20, *Even Horizon Strategies, Senior Fellow, International Security Program, New America, **Professor, University of Pennsylvania (*Peter J. Scoblic, **Philip E. Tetlock, October 13, 2020, “A Better Crystal Ball: The Right Way to Think About the Future,” Foreign Affairs, <https://www.foreignaffairs.com/articles/united-states/2020-10-13/better-crystal-ball>)

Every policy is a **prediction**. Tax cuts will **boost** the **economy**. Sanctions will **slow Iran’s** nuclear **program**. Travel bans will **limit** the spread of **COVID-19**. These claims all posit a **causal relationship** between means and ends. Regardless of party, ideology, or motive, no policymaker wants his or her [their]

recommended course of action to produce unanticipated consequences. This makes every policymaker a forecaster. **But forecasting** is **difficult**, particularly **when it comes to geopolitics** — a domain **in which** the **rules** of **the game** are **poorly understood**, information is invariably incomplete, and expertise often confers surprisingly little advantage in predicting future events.

These challenges present practical problems for decision-makers in the U.S. government. On the one hand, the limits of imagination create blind spots that policymakers tend to fill in with past experience. They often assume that tomorrow's dangers will look like yesterday's, retaining the same mental map even as the territory around them changes dramatically. On the other hand, if policymakers addressed all imaginable threats, the United States would need so large and expensive a national security establishment that the country could do little else. By many measures, it is nearing this point already. The United States has military bases in more than 70 countries and territories, boasts more than four million federal employees with security clearances, and fields 1.3 million active-duty troops, with another million in reserve. According to one estimate, the United States spends \$1.25 trillion annually on national security. When it comes to anticipating the future, then, the United States is getting the worst of both worlds. It spends untold sums of money preparing yet still finds itself the victim of surprise — fundamentally ill equipped for defining events, such as the emergence of COVID-19.

There is a better way, one that would allow the United States to make decisions based not on simplistic extrapolations of the past but on smart estimates of the future. It involves reconciling two approaches often seen to be at philosophical loggerheads: scenario planning and probabilistic forecasting. Each approach has a fundamentally different assumption about the future. Scenario planners maintain that there are so many possible futures that one can imagine them only in terms of plausibility, not probability. By contrast, forecasters believe it is possible to calculate the odds of possible outcomes, thereby transforming amorphous uncertainty into quantifiable risk. Because each method has its strengths, the optimal approach is to combine them. This holistic method would provide policymakers with both a range of conceivable futures and regular updates as to which one is likely to emerge. For once, they could make shrewd bets about tomorrow, today.

PLANNING FOR UNCERTAINTY

Although widely used in business today, the first element of this duo — scenario planning — grew out of post-World War II national security concerns, specifically the overwhelming uncertainty of the nuclear revolution.

Previously, martial experience was thought to offer some guidance through the fog of war. Nuclear weapons, however, presented a novel problem. With the newfound ability to destroy each other as functioning societies in a matter of minutes or hours, the United States and the Soviet Union faced an unprecedented situation. And unprecedented situations are, by definition, uncertain. They lack any analogy to the past that would allow decision-makers to calculate the odds of possible outcomes.

Still, early U.S. efforts at nuclear war planning sought to turn that problem into a calculable one.

During World War II, the Allies had great success with the new field of operations research, the application of statistical methods to improve the outcome of tactical engagements. After the war, the RAND Corporation — a “think factory” that the U.S. Air Force established as a repository for leading researchers — hoped to parlay this success into a new, more rational approach to war, based less on the intuition of generals and more on the quantification afforded by models and data.

Unfortunately, methods that worked at the tactical level proved nearly farcical at the strategic level. As the historian David Jardini has chronicled, RAND's first attempt to model a nuclear strategy ignored so many key variables that it nonsensically called for deploying a fleet of aging turboprop bombers that carried no bombs because the United States did not have enough fissile material to arm them; the goal was simply to overwhelm Soviet air defenses, with no regard for the lives of the pilots. In the wake of such failures, it became clear that analysts could not entirely banish uncertainty. In 1960, even Charles Hitch, a man predisposed to calculation by dint of being RAND's top economist and president of what was then the Operations Research Society of America, cautioned, “No other characteristic of decision-making is as pervasive as uncertainty.”

That, of course, raised the question of how to formulate sensible strategy. Unexpectedly, it was a RAND mathematician and physicist, Herman Kahn, who offered an answer. If the lived past could not shape strategy, perhaps the imagined future could. Frustrated with RAND's attempts to scientize war, Kahn devoted himself to crafting scenarios in the pursuit of “ersatz experience” that would prepare the United States for the future through what were essentially thought experiments. Policymakers could use these scenarios as “artificial ‘case histories’ and ‘historical anecdotes,’” Kahn wrote, thus making up for a lack of actual examples or meaningful data. They would provide analogies where there were none.

Early methods of generating scenarios were often freewheeling and discursive. But after scenario planning migrated to the business world, it took on more structured forms. The most recognizable is a two-by-two matrix in which planners identify two critical uncertainties and, taking the extreme values of each, construct four possible future worlds. Regardless of the specific shape they take, rigorous scenario-planning exercises all involve identifying key uncertainties and then imagining how different combinations could yield situations that are vastly different from what mere extrapolation of the present would suggest. By then “backcasting” — taking one of these imagined futures as a given and asking what conditions produced it — scenario planners derive both a story and a system. They come up with a plausible narrative of how a future happened and an internal logic that describes how it operates. Scenarios are not supposed to be predictive. They are meant to be provocative, challenging planners’ assumptions, shaking up their mental models of how the world works, and giving them the cognitive flexibility to better sense, shape, and adapt to the emerging future.

Predictions are accurate because of modernization in data and technique.

Ward 13, received his B.S. degree in Chemistry from the William Paterson College of New Jersey in 1977 and his Ph.D. degree at Princeton University in 1981. He was a Welch postdoctoral fellow at the University of Texas, Austin, between 1981 and 1982. (Michael D., Nils W. Metternich, Cassy L. Dorff, Max Gallop, Florian M. Hollenbach, Anna Schultz, Simon Weschile, 2013, “Learning from the Past and Stepping into the Future: Towards a new Generation of Conflict Prediction,” international Studies Review, Analytical Essays, https://www.academia.edu/103332116/SYNTHESIS_REFLECTIONS_Learning_from_the_Past_and_Stepping_into_the_Future_Toward_a_New_Generation_of_Conflict_Prediction_1)

Political events are frequently framed as unpredictable. Who could have predicted the Arab Spring, 9/11, or the end of the cold war? This skepticism about prediction reflects an underlying desire to forecast. Predicting political events is difficult because they result from complex social processes. However, in recent years, our capacity to collect information on social behavior and our ability to process large data have increased to degrees only foreseen in science fiction. This new ability to analyze and predict behavior confronts a demand for better political forecasts that may serve to inform and even help to structure effective policies in a world in which prediction in everyday life has become commonplace.

Only a decade ago, scholars interested in civil wars undertook their research with constrained resources, limited data, and statistical estimation capabilities that seem underdeveloped by current standards. Still, major advances did result from these efforts. Consider “Ethnicity, Insurgency and Civil War” by Fearon and Laitin (2003), one of the most venerated and cited articles about the onset of civil wars. Published in 2003, it has over 3,000 citations in scholar.google.com and almost 900 citations in the Web of Science (as of April 2013). It has been cited prominently in virtually every social science discipline in journals ranging from Acta Sociologica to World Politics; and it is the most downloaded article from the American Political Science Review. ² This article is rightly regarded as an important, foundational piece of scholarship. However, in the summer of 2012, it was used by Jacqueline Stevens in a New York Times Op-Ed as evidence that political scientists are bad forecasters. That claim was wildly off the mark in that Fearon and Laitin do not focus on forecasting, and Stevens ignored other, actual forecasting efforts in political science. Stevens’ funding point—which was taken up by the US Congress—was that government on quantitative approaches was being wasted on efforts that did not provide accurate policy advice. In contrast to Stevens, we argue that conflict research in political science can be substantially improved by more, not less, attention to predictions through quantitative approaches.

We argue that the increasing availability of disaggregated data and advanced estimation techniques are making forecasts of conflict more accurate and precise, thereby helping to evaluate the utility of

different models and winnow the good from the bad. **Forecasting** also helps to **prevent overfitting** and **reduces confirmation bias**. As such, forecasting efforts can be used to help **validate models**, to **gain** greater **confidence** in the resulting **estimates**, and to ultimately present **robust models** that may allow us to **improve** the **interaction** with **decision makers** seeking **greater clarity** about the implications of potential **actions**.

The butterfly effect pales in comparison to extinction.

Patrick **Kaczmarek 17**, PhD at the University of Glasgow, a Senior Researcher at Effective Giving, Visiting Researcher at the Future of Humanity Institute at the University of Oxford and a Visiting Scholar at the Department of Philosophy at the University of Pittsburgh. "How Much is Rule-Consequentialism Really Willing to Give Up to Save the Future of Humanity?" *Utilitas*, 29(2), <https://www.cambridge.org/core/journals/utilitas/article/how-much-is-ruleconsequentialism-really-willing-to-give-up-to-save-the-future-of-humanity/F867301151A79F7DA566A14DF71749B3>, cc

Although this does not exhaust the range of reasons we might (regrettably) have for focusing exclusively on directly reducing the threat of extinction, they seem to share a common thread. It would be a **mistake to allocate finite resources to indirect approaches** whenever (a) **an extinction event is looming** and (b) capacity-building (or other **indirect measures**) would **fail to** impact our ability to **prevent this particular catastrophe**. But put this way, it is hard to see why the critic finds this response from rule-consequentialism objectionable. The **call to arms** seems **appropriate** when facing an **impending apocalypse**. And, indeed, my goal for this article has never been to show that a mixed approach is (in principle) superior to a highly targeted approach. We should **abandon** indirect approaches when **harrowing circumstances** demand it.

No conjunction fallacy---in debate, people subjectively assess probabilities which is more real world and solves by cognitive learning.

Macguire et al. 18, *Department of Computer Science, Maynooth University, Maynooth, Ireland, **Department of Psychology, Maynooth University, ***School of Computer Science and Informatics, University College Dublin, Dublin, Ireland (*Phil Macguire, *Phillipe Moser, **Rebecca Macguire, ***Mark T. Keane, 2018, "Why the Conjunction Effect Is Rarely a Fallacy: How Learning Influences Uncertainty and the Conjunction Rule," *Frontiers in Psychology*, <https://doi.org/10.3389/fpsyg.2018.01011>)

These results show that people quickly adjust to the mechanics of objective uncertainty following a period of learning. Although 61% of participants failed to appreciate the applicability of the conjunction rule based on the initial verbal description at the start of the experiment, they successfully updated their stance once the objectivity of the process was communicated through repeated interaction with the system. In other words, **learning** about the **process** by actually carrying it out in practice **served to extinguish the conjunction effect**.

These results strengthen our claim that Tversky and Kahneman's (1983) conjunction effect can be explained in terms of learning and subjective information. Figure 1 shows clearly that the proportion of participants demonstrating the fallacy drops over time. This change can only happen if people are changing their opinions in some way, in other words, if they are learning something. Furthermore, the fact that participants' confidence increases over time shows that their uncertainty is of a subjective nature, and not strictly objective: **not only are participants learning** from the outcomes, but **they know** that **they are** learning. Because it assumes **independence** between outcomes, **classical probability excludes** the possibility of **learning**; the

conjunction rule therefore does not hold while learning is taking place. As per our hypothesis, the results suggest that as learning becomes exhausted, the incidence of the conjunction effect drops. This implies that the conjunction effect observed here is not a fallacy; instead, it reflects the expectation of learning. The conjunction effect is only a fallacy in cases where participants are certain that they cannot learn anything, and cannot improve their performance at the task any further.

The best way to eliminate subjective uncertainty is to allow people to engage in a judgment task as many times as they want, until they are utterly assured that there is nothing left to be learned. Unfortunately, a hallmark of conjunction fallacy inducing tasks is that they are not repeated: participants are asked a given question a single time, raising the spectre of subjective uncertainty. After 30 trials, nearly a third of our participants were still demonstrating a conjunction effect. Additional research is required to identify whether a true fallacy can ever be observed, or whether the effect would drop to zero with sufficient trials.

Given that it quickly drops off as participants learn about the task, the conjunction fallacy is unlikely to be observed in practice. For example, it is unlikely that professional gamblers could increase their winnings by exploiting the effect. The results of Experiment 2 show that a few seconds of gambling is sufficient for participants to adopt the correct model. Thus, the failure here lies not in people's ability to think rationally. Instead, it lies in the inadequacy of verbal descriptions for communicating objective uncertainty. When people read or hear words, they instead think in terms of subjective uncertainty. Why?

We posit that, rather than exposing a blind spot in human rationality, the conjunction effect simply reflects the unnaturalness of objective uncertainty, especially when communicated via words. Nearly all the decisions that people make in everyday life are based on personal uncertainty, not objective uncertainty. The idea that a diverse set of people might share the same uncertainty is extremely unusual, and only arises when contemplating mechanisms that are capable of manufacturing randomness (perhaps explaining why the mathematical methods of probability were only discovered in the seventeenth century and not earlier). In everyday life, judgments of likelihood, like judgments of informativeness, are nearly always a personal construct (see Fuchs et al., 2014).

The idea that somebody would seek to communicate, through words, the idea of a scenario involving objective uncertainty is especially bizarre. People talk to each other to trade information, hence conversation is dominated by situations involving subjective information. In contrast, people are unlikely to ever discuss situations involving objective randomness, because there is nothing new to learn about such situations. If your friend spent hours talking about unpredictable dice rolls, or objective mechanisms for filtering people on a social media database, you would quickly find yourself a new friend. Verbal descriptions may simply be unsuited to communicating objective uncertainty. Hogarth and Soyer (2011) found that participants preferred to develop models by experimenting with a simulation for themselves rather than accepting a verbal description given by someone else. Further work by Haisley et al. (2010) has shown that experience sampling improves both comprehension and satisfaction with returns in investment decisions that involve risk, suggesting that verbal descriptions often do not succeed in communicating probabilistic models.

It is thus little wonder that people are prone to interpreting Tversky and Kahneman's (1983) scenarios in terms of subjective uncertainty. Most of these materials make a direct appeal to asymmetric information, focusing on specialized situations in which participants are not expert (e.g., geopolitics, medical practice, sports prediction). The two exceptions in their study are the Linda scenario and the dice scenario. Unfortunately, the Linda scenario leads participants to imagine a person called Linda with whom they are personally unfamiliar, rather than viewing the description as a selection process for women. The only scenario which genuinely supports the interpretation of objective uncertainty is the dice one, and here the objective nature of the uncertainty is disguised by (a) including an unrepresentative sequence as a distractor (b) using long sequences to hide the conjunction and (c) failing to allow participants sufficient interaction with the dice. When these obfuscations are removed, the conjunction effect quickly diminishes.

In sum, based on our results, we believe that previous observations of the conjunction effect reflect, not a deficiency of human logic, but the rational tendency to interpret verbal descriptions in terms of subjective uncertainty (i.e., as if some knowledge is being communicated, and the listener is at an informational disadvantage).

Admittedly, the experiments we have presented in this paper are mere sketches whose results might well be compatible with other competing explanations for the conjunction effect. Further research is required to confirm our theory, specifically focusing on the use of likelihood judgements in ecologically valid settings, where tasks are repeated many times in succession, as they are in real life. The main advantage of our theory is that it has no psychological component: it does not make any assumptions about the idiosyncracies of human behavior. Our theory simply constitutes a mathematical model of how information should be processed in order to optimize decision making in the context of subjective uncertainty; the results of our experiments suggest that people make decisions which reflect the optimal model. Given that our

theory is more parsimonious, we suggest that the burden of proof should be placed on those theories that presume that a psychological component is needed to explain the conjunction effect.

4. Conclusion

Uncertainty is an intrinsic and omnipresent feature of the real world environment. However, the type of uncertainty we deal with in everyday life is unlike that involved in rolling a dice. We do not assume that our observations are independent of each other. Instead, we know that other people know things that we don't know. We accept the idea that different observers hold different uncertainties, and we watch out for patterns that may be subjectively informative. Accordingly, likelihood judgements in the real world rarely, if ever, obey the conjunction rule.

The notion that the **conjunction** effect represents a **fallacy** is firmly entrenched. However, our **results** suggest that the error is **not** on the part of the **participants**, who are sensitive to the subjective informativeness of the outcomes, but on the part of the **experimenters**, who naively expect **classical probability**, which assumes **objective uncertainty**, to apply in **real world** situations. In everyday life, where **subjective uncertainty** dominates, it is subjective informativeness rather than **classical** probability which provides the **correct approach** for decision-making.

SUBSTITUTABILITY---only consequentialism explains action theory.

Sinnott-Armstrong 92, professor of practical ethics. (Walter, 1992, "An Argument for Consequentialism," Philosophical Perspectives, Volume 6, pp. 399-421)

A **moral reason** to **do an act** is **consequential** if and only if the reason **depends** only on the **consequences** of either **doing the act** or **not doing** the act. For example, a moral reason not to hit someone is that this will hurt her or him. A moral reason to turn your car to the left might be that, if you do not do so, you will run over and kill someone. A moral reason to feed a starving child is that the child will lose important mental or physical abilities if you do not feed it. All such reasons are consequential reasons.

All other moral reasons are non-consequential. Thus, a moral reason to do an act is **non-consequential** if and only if the reason **depends** even partly on some **property** that the act has **independently** of its **consequences**.

For example, an act can be a lie **regardless** of what happens as a result of the lie (since some lies are not believed), and some moral theories claim that that property of being a lie provides a moral reason not to tell a lie regardless of the consequences of this lie. Similarly, the fact that an act fulfills a promise is often seen as a moral reason to do the act, even though the act has that property of fulfilling a promise independently of its consequences. All such moral reasons are non-consequential. In order to avoid so many negations, I will also call them 'deontological'.

This distinction would not make sense if we did not restrict the notion of consequences. If I promise to mow the lawn, then one consequence of my mowing might seem to be that my promise is fulfilled. One way to avoid this problem is to specify that the consequences of an act must be distinct from the act itself. My act of fulfilling my promise and my act of mowing are not distinct, because they are done by the same bodily movements.¹⁰ Thus, my fulfilling my promise is not a consequence of my mowing. A consequence of an act need not be later in time than the act, since causation can be simultaneous, but the consequence must at least be different from the act. Even with this clarification, it is still hard to classify some moral reasons as consequential or deontological,¹¹ but I will stick to examples that are clear.

In accordance with this distinction between kinds of moral reasons, I can now distinguish different kinds of moral theories. I will say that a moral theory is consequentialist if and only if it implies that all basic moral reasons are consequential. A moral theory is then non-consequentialist or deontological if it includes any basic moral reasons which are not consequential.

5. Against Deontology

So defined, the class of deontological moral theories is very large and diverse. This makes it hard to say anything in general about it. Nonetheless, I will argue that no deontological moral theory can explain why moral substitutability holds. My argument applies to all deontological theories because it depends only on what is common to them all, namely, the claim that some basic moral reasons are not consequential. Some deontological theories allow very many weighty moral reasons that are consequential, and these theories might be able to explain why moral substitutability holds for some of their moral reasons: the consequential ones. But even these theories cannot explain why moral substitutability holds for all moral reasons, including the non-consequential reasons that make the theory deontological. The failure of deontological moral theories to explain moral substitutability in the very cases that make them deontological is a reason to reject all deontological moral theories.

I cannot discuss every deontological moral theory, so I will discuss only a few paradigm examples and show why they cannot explain moral substitutability. After this, I will argue that similar problems are bound to arise for all other deontological theories by their very nature.

The simplest deontological theory is the pluralistic intuitionism of Prichard and Ross. Ross writes that, when someone promises to do something, 'This we consider obligatory in its own nature, just because it is a fulfillment of a promise, and not because of its consequences.'¹² Such deontologists claim in effect that, **if I promise to mow the grass, there is a moral reason for me to mow the grass, and this moral reason is constituted by the fact that mowing the grass fulfills my promise**. This reason exists regardless of the consequences of mowing the grass, even though it might be overridden by certain bad consequences. **However**, if this is why I have a moral reason to mow the grass, then,

even if I **cannot** mow the grass without starting my mower, and starting the mower would enable me to mow the grass, it still **would not follow** that I have **any moral reason** to start my mower, since I **did not** promise to start my mower, and starting my mower does not fulfill my promise. Thus, **a moral theory cannot explain** moral **substitutability** if it claims that **properties** like this provide moral reasons.

Topicality

Overview---2NC

T is a voter---2 impacts: DROPPED OUR IMPACT---outweighs everything!

1. PROCEDURAL FAIRNESS---outweighs for 5 reasons:

- a. INTRINSIC GOOD---it's on the same moral basis as their impacts like discrimination.
- b. EMPIRICS PROVE---they kept the 1AC to 8 minutes and don't clip---it's valued by them too.
- c. PARADOXICAL---evaluating defense requires giving them a fair evaluation---it's a logical prerequisite.
- d. SOLVENCY---proximity to the ballot means voting solves fairness as an in-round violation making the counter-interp irrelevant.
- e. BALLOT PIK---you can disagree with their reading in a competitive setting while endorsing the rest of the 1AC.

2. CLASH---outweighs for 4 reasons:

- a. DEBATE SPECIFIC---their education can be gained from alternative venues but only debate can solve engagement skills and argument conceptualization.
- b. URNS CASE---T is agnostic on content so testing is a better route to change than their method since we have a mechanism to persuade and change norms.
- c. NEUTRALITY---'good' or 'bad' clash is irrelevant since debate shapes skills NOT subjectivity---we internalize losses as technical AND adjust our arguments to win which bars the possibility of debate influencing our lives, and any effect it does have is outweighed by external, interpersonal factors.
- d. LINEARITY---if clash is valuable, maximize it by preserving prepared debates for reflexive advocates.

Dropped a framing issue which is that we're key to TRUTH TESTING---we can't test merits of a pedagogy if the neg can't respond. That risks endorsing violent ideas since we couldn't test them AND means they don't get to weigh case---it's just as likely that they're winning it if we weren't able to contest it.

T---Defense OV---2NC

Few arguments that will zero all offense:

1. READ IT AND LOSE---we don't exclude the 1AC's reading, only winning requires being topical.
2. READ IT ON THE NEG---that gets the same end but makes discussions predictable.
3. NO SUBJECT FORMATION---that was the overview.

Interp---AT: C/I---2NC

Reject the counter-interp:

1. LIMITS---it justifies tons of undebatable advocacies, which links to our offense.

[Explain].

2. PREDICTABILITY---we cite common definitions that people would find during prep---even if their interp exists we couldn't have prepped around it. That's a pre-requisite---if predictability isn't important then I get to say "interp---resolved is a legal instrument in [this specific round]." Solves their offense since they get it in other rounds.

3. AFF CONDO---lack of a specific tie means they can shift around 1NC choices---makes even a researched debate impossible.

4. DON'T MEET---[explain] AND they can't go for it---they didn't define [xxx]. Meeting the whole resolution is key since the AFF burden is proving it true in its entirety.

T---AT: Subject Formation---2NC

Debate cannot shape subjectivities:

1. Independent debates have no effect. This ballot has to outweigh personal background and both future AND past debates. We'll double down and fix our blocks, not our minds.
2. Empirics are neg. Debaters have gone for the cap k their whole careers then worked for hedge funds.
3. Res focus straight turns this. If they're right, then forcing in-depth research over a season accesses it better.
4. Believing that people change their minds with individual ballots kills their advocacy. They think they've done enough when they haven't, decimating solvency.

T---AT: Microaggression---2NC

Deploying topicality isn't a voting issue:

1. We go for it against policy affs too---proves we aren't attempting to exclude an identity.

2. [Explain specific].

BUT refuse to evaluate it as one---going to tab solves instead AND better:

1. GUILT DISSUASION DA---it lets judges wash their hands of all wrongdoings and perceive themselves as ethical actors because they cast one ballot to resolve [xxx].

2. WRONG VENUE---a competitive venue with the ballot on the line is the worst forum to resolve interpersonal issues. It teaches debaters to double down when actually confronted, speech times limit the ability for debaters to convey issues to the judges, and the solely technical manner of it lets bad debaters get out of allegations by winning no link. Tab solves because its detached from competition.

3. CAN'T SOLVE---voting aff won't communicate that it was actually violent. We'll think they went for the impact turn solely to win and we'll internalize losses as a technical failure. Stopping the debate solves by properly communicating.

CP---CIL

DA---Rider

Case

CP---Equity

Solvency---2NC

The counterplan solves the case---instead of establishing [plan's mechanism] as a protection of legal rights, it uses proceedings of equity to protect intellectual property.

It's perceptively indistinguishable---solves.

Brooks M. **Chupp 22**, J.D. Candidate, Notre Dame Law School, 2023, "'A Sword in the Bed' : Bringing an End to the Fusion of Law and Equity," 98 Notre Dame L. Rev. 465, <https://scholarship.law.nd.edu/ndlr/vol98/iss1/8>

As time moved onward toward 1848, proponents of the fusion of law and equity changed direction: the issue wasn't that equity was inherently dangerous, it was that equity was inherently no different from law.¹⁹ Interestingly, those fusionists argued that even if equity was created distinct from law, it "had become indistinguishable from law in its precedent-bound jurisprudence."²⁰ Some fusionists even argued that a separate equity jurisdiction was not just unnecessary, but constituted an active encroachment on the law; indeed, at the Field Code debates conducted in the New York legislature, New York fusionist Charles O'Connor argued that "[t]here was not at present any such thing recognized in jurisprudence . . . which the law did not define and declare."²¹ The fusionists had a powerful ally in their fight: Blackstone, who wrote that, however law and equity may have been created, both "are now equally artificial systems, founded in the same principles of justice and positive law; but varied by different usages in the forms and mode[s] of their proceedings."²²

Perm---AT: DB---2NC

Reject 'Doing Both:'

1. FUSION---our net benefit is about empowering equity in absence of law---the perm instead reiterates that it must be linked.

Henry E. **Smith 21**, Fessenden Professor of Law, Harvard Law School, "Equity as Meta-Law," 130 Yale L.J. 1050, March 2021, Lexis

Equity occupies a kind of limbo in current law. The labels "equity" and "equitable" are still employed, and equity has not ceased to function as meta-law altogether. And yet in our post-fusion, post-Realist legal system, the sense of equity as meta-law is being lost in important areas of private law. Equity is now often associated with mere discretion or coercive remedies. In this Section, I will show how equity once explicitly helped overcome the limitations and misfirings of the law in situations involving uncertainty and complexity, and in particular at the property/contract interface where rights in rem (against others generally) and rights in personam (rights availing between specifically identified parties) interact in an uneasy fashion. These areas include privity, misappropriation and hot news, good faith purchase, and trusts. In each case, I will suggest that a greater attention to meta-law could improve the law in these areas. At the very least, as new problems turn up in such pockets of special complexity in private law, equity as meta-law can potentially do better than mono-level law alone.

1. Privity and Its Discontents

Privity is often perceived as having a bad formalist odor. Privity requirements, which still play a role in the law, have come to stand for a formalism that needs to be overcome in the name of justice, fairness, or good policy. Privity is not an unmitigated evil though, because it does reduce information costs. Like asset partitioning, 148it allows private actors to focus on a subset of the world, for both good and ill. For present purposes, privity is a good case study for how equity as meta-law regulates the law when it fails on account of its generality--and how it might continue to do so if given a chance. In earlier times, equity served as the main tool for limited loosening of privity requirements. However, now when postfusion and post-Realist courts and commentators seek to overcome privity, they tend to do it very differently--without meta-law and on one [*1091] messy level, haphazardly and often based on notoriously amorphous multifactor balancing tests. The question of overcoming privity becomes one of balancing the policies for and against widening, using a multiplicity of incommensurate and often conflicting factors. This is notoriously true in the area of lawyer liability to third parties where multifactor balancing tests have been termed "equitable" even though they replace, rather than replicate, a more constrained metalew style of equity.¹⁴⁹ These flattened solutions run the risk of misuse by opportunists (if the rules are spelled out) or of making the structure of liability highly uncertain. Although a full treatment of privity across areas is not possible here, I will suggest that equity as meta-law could even now provide better tools for modulating the effects of privity requirements.

That zeros the net benefit. Equity helps by overriding law---NOT by fusing with it.

Henry E. **Smith 21**, Fessenden Professor of Law, Harvard Law School, "Equity as Meta-Law," 130 Yale L.J. 1050, March 2021, Lexis

In practice, **conflict** came to **replace** the **creative tension** of **law** and **equity**. Because the **fusion** of law and equity occurred in an era when the law's **formalism** was increasingly **unmoored** from **natural rights** and **natural law**, the structures of common **law** and **equity** alike were regarded in increasingly **positivist and reductionist terms**. The **law** was treated as a **collection of rules** and **flattened** out. This reductionism, which seems almost like second nature now, can likewise be traced to the fount of modern thinking on the subject, Holmes's Path of the Law. He avers that "a body of law is more rational and more civilized when every rule it contains is referred articulately and definitely to an end which it subserves, and when the grounds for desiring that end are stated or are ready to be stated in words." 37 **This reduces law to a heap of rules** with no synergistic effect. 38 Rule and purpose have to be matched directly, leaving little room for doctrines to act in concert or for the law to exhibit a more articulated structure.

[*1064] **After fusion** and the rise of common-law reductionism, **what we are left with is a half-submerged, diffuse, and flattened equity**. The rationale for equity as a **separate system** is **hard to discern**. So Maitland could say that **the only thing unifying equity was a set of courts that no longer existed**:

Equity is a certain portion of our existing substantive law, and yet in order that we may describe this portion . . . we have to make reference to courts that are no longer in existence. . . . The only alternative would be to make a list of the equitable rules and say that Equity consists of those rules. . . . [But] if we were to inquire what it is that all these rules have in common and what it is that marks them off from all other rules administered by our courts, we should by way of answer find nothing but this, that these rules were until lately administered, and administered only, by our courts of equity. 39

Later, on this side of the Atlantic, Zechariah Chafee took the expansive post-Realist view that "[e]quity is a way of looking at the administration of justice; it is a set of effective and flexible remedies admirably adapted to the needs of a complex society; it is a body of substantive rules." 40 Yet ultimately, he took Maitland's idea "even farther" to say that "[e]quity is that body of rules which would be taught in courses called equity if there were any such courses." 41

Equity is **submerged enough** that **many** argue forcefully for **complete fusion** (with spirited pushback from some Australians). 42 Law and equity have been [*1065] **likened** to having **two sets of rules and umpires**, red and green, in a soccer-like game. **Substantive** fusion stands for the idea that having **one** completely **separate set of rules** (purple) would be **better** than **any other way** of **combining** two potentially **conflicting** and **necessarily incoherent sets** of rules. 43 Most challenging is Glanville Williams's idea that two systems are inherently ridiculous:

Equity thus worked "behind the scenes" of the common law action; the common law principles were theoretically left intact, but by means of this intricate mechanism they were superseded by equitable rules in all cases of conflict or variance. The result justified the sarcasm of the critic who said that in England one court was set up to do injustice and another to stop it. 44

Generally speaking, common-law countries share an impulse to assimilate law and equity to produce a unified set of rules. On the Holmesian and "modern" American view, the law was regarded as a single-tiered device for solving problems as they arose. In the United States, fusion thus became an occasion to mix law and equity together and to prefer equitable-style contextualism, but without either constraints or the second-order aspect. Instead, considerations of commercial morality, fairness, and policy would in principle inform the development and application of rules across the board. By partial contrast, in England, equity retained its separate character to a greater extent, but there too it was increasingly placed on one plane with the regular law. However, instead of allowing equitable contextualism and discretion to slip its traditional bounds, English courts developed ever more baroque doctrines to solve the problems of polycentricity, conflicting rights, and opportunism on a single level. 45

Equity has been further **obscured** because of its **dynamic relation** to law over time. A common **fusionist objection** to theories of equity is that the **label "equity"** and the equity courts' jurisdiction both **varied over time**. What was once equity has sometimes become law. For example, some varieties of fraud were first [*1066] handled by equity before gradually being brought under the heading of common-law fraud. 46 **If we focus on which specific problems** and which

particular rules were associated with **"equity"** at various times, the associations **look arbitrary**. If, as I will argue, we focus on equity's **role** in **tackling new problems** and **domesticating them** through **meta-law**, we begin to see that these **associations** are **rather** the **byproduct of a coherent function**. 47

Not everyone is a fusionist. Before very recently, equity **traditionalists**, particularly in Australia, have argued for equity's distinctness from law. They term the expectation that **unified courts** should produce **uniform law** the **"fusion fallacy."** 48 They are **onto something** here, and likewise when they aver that "[e]quity can be described but not defined." 49 However, in their pronouncements that "[e]quity is not a set of rules but a state of mind," 50 noninitiates hear impenetrable mysticism. The **holism** endorsed by equity's defenders is **not misplaced**--those **aspects of equity that are meta-law cannot** easily **be reduced to a first-order concept** without losing something. But since a definition of equity as a **first-order concept** will be **inaccurate** or **hopelessly vague**, the fusionists and traditionalists are **speaking past each other**. Their views are **orthogonal**, almost literally.

More recently, moderate fusionist positions and moderate nonfusionist positions have also come into play. For example, based on policy reasons specific to context, Leigh Anenson would extend unclear hands in a limited way to damages actions at law, 51 whereas Samuel Bray performs a similar kind of analysis to conclude that laches should be confined to equitable claims and remedies. 52 Seeing a role for **meta-law** will allow us to **differentiate functionally** between [*1067] situations calling for **fusion** of law and equity, and those contexts where they should be **kept distinct conceptually**, if no longer institutionally. 53

2. MOOTNESS---remedying a problem at law makes it **ineligible** for resolution in equity.

Amy J. Schmitz 4, Associate Professor, University of Colorado School of Law, "Refreshing Contractual Analysis of ADR Agreements By Curing Bipolar Avoidance of Modern Common Law," 9 Harv. Negotiation L. Rev. 1, Spring 2004, Lexis

Nonetheless, it would have been within an equity court's domain to compel participation in arbitration. Courts of equity had authority to **craft "coercive" orders** that **directed** or **precluded action**, whereas law courts generally declared money obligations and entered judgments. 260 [FOOTNOTE 260 BEGINS] Dan B. Dobbs, Law of Remedies 2.1(1), at 48-49 (2d ed. 1993). Equity courts ordered a **variety** of remedies that included **not only "coercive" remedies,** such as **injunctions**, but **also restitutionary** and **declaratory** remedies that more closely **resembled** relief provided in **courts of law**. Id. at 49. In addition, equitable remedies were distinctive in that they could be enforced by fine or imprisonment for failure to comply, whereas "law courts did not seek to enforce their orders by contempt powers, but by seizure of property." Id. [FOOTNOTE 260 ENDS] Unlike a judge, a chancellor in equity court "actually concerned himself with the evidence of witnesses" and fashioned rules to fit the facts of the case. 261 Equity courts were **free to order whatever remedies they deemed appropriate to enforce equitable rules**. 262 Furthermore, while a **law** court would emphasize **legal** entitlements under **preexisting** rules, an **equity** court generally **would treat** access to its remedies as a **privilege** ordered in a **court's discretion** to **do "justice apart from law."** 263 [FOOTNOTE 263 BEGINS] Dobbs, supra note 260, at 50. Equity courts' high degree of **discretion** was one of its **"striking characteristics"** that pertained to its remedies, as well as its recognition of defenses based

on hardship of the defendant and its power to shape relief to fit particular facts. *Id.* Indeed, equity courts' **discretion** caused **law** courts to sometimes view their flexibility "as **a kind of lawlessness.**" *Id.*

[FOOTNOTE 263 ENDS] "Equity would not grant a remedy for a legal right unless, without the equitable remedy, the plaintiff would [*55] suffer irreparable harm." 264 **Plaintiffs in equity**, therefore, would **have to show injury** that was "**irreparable not**" in terms of **severity** but **in terms of** the injury's **remediability at law**." 265 This gave rise to the "irreparable harm" requirement that courts continue to recognize. 266

That's bad:

a. UNCERTAINTY.

C. Christopher **Brown 80**, B.A. 1963, Swarthmore College; M.A. 1965, University of Delaware; J.D. 1968, Georgetown University. Associate Professor of Law, University of Maryland School of Law, "The Law/Equity Dichotomy in Maryland," 39 Md. L. Rev. 427, 1980, <http://digitalcommons.law.umaryland.edu/mlr/vol39/iss3/3>

One of the **more difficult tasks** the Maryland **litigator faces** has certainly been the search to find the ever elusive **demarcation between law and equity**. The historically rooted dichotomy immediately confronts the litigant: **Where can or must I sue, at law or in equity?** The **"vague and shadowy" boundary**, marked out by the seemingly simple maxims of equity, **can** surely **undermine** an **attorney's confidence** when he **needs it most**, at the **beginning of litigation**. Its **uncertainties** can also **distract** from a party's **rational choice** as to which **forum** offers greater strategic advantages.

b. TURF WARS.

Henry E. **Smith 21**, Fessenden Professor of Law, Harvard Law School, "Equity as Meta-Law," 130 Yale L.J. 1050, March 2021, Lexis

In the late nineteenth and early twentieth centuries, fusion preoccupied legal reformers, who not only sought to overcome the jurisdictional **clumsiness** of **two courts** but **promised** thereby to solve virtually every ill in the legal system. 32 The merger of law and equity in the United States reached its culmination in the Legal Realist era. The Legal Realists were suspicious of equity largely because they saw **injunctions** as a **dangerous tool** that **courts** had **wielded overenthusiastically** in labor and speech cases. 33 As time went on, equity skeptics also pointed to the inconveniences of **the dual-court system** and the **intricacies** of the **rules** at their **interface**. 34 As equity was seen as less extraordinary towards the end of the nineteenth century, it **tended to slip** its **principles-based self-restraint**, and started to **produce strange situations** of **conflicting injunctions** in corporate cases. 35

Perm---AT: DCP---2NC

'Do the CP' is severance---that doesn't disprove the opportunity cost OR is a voter for AFF condo.

'IPR'---are rights protected by law.

Virtuoso Legal 21, a team of intellectual property specialists based in Leeds and London - operating worldwide, have successfully tried cases in the IPEC, High Court, Court of Appeals and United Kingdom Supreme Court, ranked yearly in legal directories such as the Legal 500 and Chambers and Partners, cementing their status as a Top 2% law firm in the world, "What is intellectual property (IP)?," Virtuoso Legal, first Archived by the Way Back Machine on 10/22/21, <https://www.virtuosolegal.com/faq/what-is-intellectual-property/>

Intellectual **p**roperty (otherwise known as IP) **is the** name given for a category of **intangible creation**s emerging from human creativity.

Examples of creations that fall under IP are videos, photos, designs, inventions, brands, business secrets and a lot more. It has become more important than ever for businesses and creators to protect their intellectual property.

How is intellectual property protected?

Intellectual **p**roperty **is** **protected** **by** **law** through intellectual property rights (**IPRs**) – some of which you have to register and others which are automatic.

This can include things like **patents**, **copyright** or **trademarks**, and design rights. Intellectual property rights enable you, the property holder, to earn recognition or financial benefits from anything you invent or create.

Most countries around the world have regimes of intellectual property rights, and in many cases, these are also covered by international treaties and legal regimes.

Particularly in the three topical areas.

Digital Watch 19, an initiative of the Geneva Internet Platform, supported by the Swiss Confederation and the Republic and Canton of Geneva, operated by DiploFoundation, "Intellectual property rights," DigWatch, 2019 (Last Date Cited), <https://dig.watch/topics/intellectual-property-rights>

You have the legal right to protect the creations of your intellect, such as inventions, artistic and literary works, designs and symbols, and names and images used in commerce. The **rights you have** over these **creations** are **intellectual property rights**, which are **protected by law** through **patents, copyright, and trademarks**, for example. These protections allow you as a creator and an inventor to be recognised and financially benefit from your creations.

Equity's distinct---courts sitting in equity choose to provide privileges, rather than being obligated to protect rights.

John C. P. **Goldberg & Benjamin C. Zipursky 20**, Goldberg is Carter Professor of General Jurisprudence at Harvard Law School; Zipursky is Professor of Law and James H. Quinn '49 Chair in Legal Ethics at Fordham University, "From Riggs v. Palmer to Shelly v. Kraemer: Judicial Power and the Law-Equity Distinction," Philosophical Foundations of the Law of Equity, edited by Dennis Klimchuk et al., First edition, Oxford University Press, 2020, pp. 241–263

American legal scholars like to point out that judges are governmental officials, not oracles. They do so in aid of the claim that common law adjudication is no less 'state action' than any other mode of lawmaking. Like other realist formulations, this one distorts as much as it

illuminates, for it treats officials' actions as a monolith. Leave aside familiar interbranch differences. **Judges** themselves wear **different hats**: **sometimes** they **apply law**; **other times** they **do equity**. To **understand Anglo-American legal systems**, one must be **attentive** to the **differences** between these two modes of adjudication.

An important body of recent scholarship has argued that **the law– equity distinction is neither a mere historical artefact nor bad jurisprudence**.¹ [FOOTNOTE 1 BEGINS] In offering an account of **equity as structurally distinct from law** in a way that complements it, **we follow a path staked out** long ago by **Aristotle**. Aristotle, *The Nicomachean Ethics* (JL Ackrill and JO Urmson (eds), tr David Ross, rev ed OUP 1980). Aristotle's cryptic account has been developed by a number of sophisticated theorists from whose works we have benefited greatly, including Henry Smith, as well as Andrew Gold, Larissa Katz, Dennis Klimchuk, Ben McFarlane, Paul Miller, Irit Samet, and Robert Stevens. [FOOTNOTE 1 ENDS] While we are not equity experts, we aim in this chapter to add to that literature by means of a dialectical account. We start with a deliberately stark contrast between two kinds of judicial authority— **the authority to apply law** and **the authority to do equity**. Although there probably is some historical grounding for this contrast, we do not offer it as an accurate description of the precise domains of 'law' and 'equity' at any particular moment in Anglo- American legal history. Law and equity, on this understanding, **are two distinct modes of judicial decision- making**.

Next we explain how **certain features of the relationship** of law and equity will tend to cause (and almost certainly have caused) **the lines** between these two forms of judicial authority to **shift** and **blur**. The **upshot** of this second stage of the argument, **however, is not** that the distinction between law and equity **should be abandoned**. **Quite the opposite**, it provides a set of tools that, we hope, will generate greater understanding of its significance and its subtleties.

To be more specific: section II maintains that a theoretical approach to private law we have developed under the banner of 'civil recourse theory' can shed light on the law– equity distinction. A plaintiff who sues in tort, or breach of contract, and who seeks compensatory damages, is best understood as claiming to be legally entitled to recourse from the defendant (and to judicial assistance in obtaining recourse). A claim for equitable relief is a different beast. The claimant does not assert an entitlement to judicial enforcement of a right of recourse but instead petitions the court to block or alter the ordinary operation of the law, or to provide relief to which the claimant has no legal entitlement based on an allegation of some deficiency in the operation of the law.

Section III elaborates our account of the distinctive nature of courts' equitable authority by cataloguing its applications in famous decisions such as *Riggs v Palmer*² and *Meinhard v Salmon*.³ Section IV then harnesses our rendition of the law– equity distinction to help make sense of two prominent but perennially controversial American decisions— *Moore v Regents of California*⁴ and *Shelley v Kraemer*.⁵ Both, we contend, are best understood as instances of courts doing equity rather than enforcing legal rights. These examples suggest that an appreciation of the differences between a court decision vindicating a claim of legal right and a decision granting equitable relief can help courts and commentators make better decisions even in the modern, 'post- fusion' world.

Section V explains why, even though law and equity are distinct, the lines between them have tended to shift and to become subtler over time, and why these tendencies are bound to continue. On the one hand, in applying and developing the law, courts sometimes incorporate equitable doctrines, concepts, or ways of thought. On the other hand, for good reasons, the judicial administration of equity has a tendency to become more routinized, and in that sense more law- like. Moreover, the granting of equitable relief to fill gaps in the law sometimes has led courts to eliminate those gaps, thereby moving certain matters from the equitable to the legal side of their dockets. The courts' application of the law, and their exercise of equitable authority to respond to problems generated by the law, is an iterative phenomenon. An adequate understanding of Anglo- American law requires an appreciation of this dynamic.

II. Law vs Equity

Historically and theoretically, equity has operated as a supplement to law. **If a plaintiff has a claim predicated on a legal right**, the court will ordinarily **resolve** the case by **applying** the **law**. **Legal** causes of action have, in this sense, a kind of **priority** over **equitable** causes of action, even though, as we will see, **equity also** claims a certain kind of **authority** over the operation of law. We thus begin with an account of law— private law, more specifically. This

account, building on earlier work, analyses Anglo- American private law as a scheme of civil recourse. We then offer a contrastive account of what it means for courts to grant equitable relief.⁶

A. Civil Recourse

In areas of private **law** such as **tort** and **contract**, if a complaint is **properly pleaded** and its allegations **proven**, the plaintiff is **entitled** to have a **judgment** against the defendant. This entitlement is a **composite** of two **rights** enjoyed by the plaintiff. First, it consists of a Hohfeldian claim right against government, **correlative to a duty owed** by government to individuals that it afford them recourse against persons who have, under applicable legal rules, wronged them. Second, it consists of a Hohfeldian power that correlates to a liability in the defendant. This power— the plaintiff’s capacity to alter legal relations by commencing and proving a lawsuit— is often called ‘a right of action’.

In providing citizens with courts and rights of action, the state satisfies the principle of civil recourse, which is a principle of both law and political morality. According to it, persons who are prevented by the state from responding directly to conduct deemed by the law to be a mistreatment of them must be given an avenue of civil recourse against those who have mistreated them. Tort law provides a clear illustration of private law operating as civil recourse. A person at the ‘victim end’ of what a court or legislature has deemed to be a tort is entitled to redress from the person who injuriously wronged her, typically in the form of money damages. The provision of a right of action to plaintiffs complies with the principle of civil recourse. Through tort law, the state empowers a victim to redress a wrong done to her by obtaining damages payments from a person who has been determined to have committed the wrong against the victim.

Much of the common law of contract fits within a similar framework. Although the primary obligations of contract are distinct from those of tort by virtue of being largely defined by agreement, the state supplies the breach- of- contract plaintiff with a legal power akin to the power enjoyed by a tort plaintiff— ie, the power to change legal relations by having a court issue a judgment that the defendant owes compensation to the plaintiff. In this area of private law, compensation amounts not so much to ‘redress’ (as we use that term) as to the provision of an equivalent to performance. Hence, damages are typically awarded in an amount sufficient to put the plaintiff in the position she would have been had there been performance. In granting a right of action for damages for breach of contract, the state is again satisfying the duty it owes to persons under its authority to enable them to invoke judicial procedures to obtain recourse.

Beyond tort and contract, Anglo- American legal systems contain various bodies of law that confer rights of action. Replevin confers a power on plaintiffs to have officials seize personal property owned by the plaintiff that is in the possession of another. Because criminal and tort law severely constrain the use of self- help to repossess property, the state instead provides a right of action to obtain such assistance. A decedent’s legal designee— an executor— has a duty to probate a will in accordance with the decedent’s instructions. Anglo- American law provides them with a legal power to do so through the courts. Certain civil rights statutes provide individuals with rights of action that allow them to obtain recourse for statutory wrongs. And so on.

We have developed civil recourse theory in part by distinguishing it from corrective justice theory. Both theories accept that legal claim rights (such as the rights recognized in tort law not to be defamed or negligently injured) are correlative to legal duties (such as the duties not to defame or negligently injure). But they part ways over the characterization of the legal relations that arise when primary rights are violated and primary duties are breached.

Consider the situation of a tort victim. Corrective justice theorists regard the victim as enjoying a legal claim- right to compensation correlative to a duty owed by the defendant to compensate. In other words, a person’s duty to refrain from negligently injuring or defaming someone is seen as continuous with her duty to pay damages to one whom she negligently injures or defames.⁷ On this view, courts presiding over tort claims see to it that a plaintiff’s claim right (that the defendant compensate her) is satisfied and that the defendant’s duty (to compensate the plaintiff) is performed. In this sense, justice is done— a normative disequilibrium is corrected.

By contrast, we deny that a tort victim (qua tort victim) is the bearer of a legal claim right that the defendant compensate her, and that a tort defendant is under a legal duty to the plaintiff to compensate her. Instead, as noted, the victim enjoys a legal power that correlates to a liability. A tortfeasor who has not yet been sued might be under a moral duty to compensate his victim, but he is not under a legal duty to do so. Instead, he faces a vulnerability to having his legal relations altered at the behest of the victim. There are certainly situations, outside of tort law, in which an actor does incur a legal duty to pay a plaintiff prior to being sued. For example, an insurer has a legal duty to pay a covered claim properly submitted by an insured, and a government is sometimes under a statutory duty to pay benefits to eligible beneficiaries. In these instances, the law, by granting rights of action to insureds and beneficiaries, really is empowering them to enlist the courts to enforce a pre- existing legal duty to pay. Tort law operates differently. So too does contract law.

The question of whether to characterize private law as instantiating the principle of civil recourse or the principle of corrective justice is theoretical, but it has normative implications. On the corrective justice view, when the courts resolve tort, contract, and other private law claims, they are by definition seeing to it that justice is done. By contrast, while our approach grants that there is some connection between a state providing for civil recourse and the pursuit of justice, it takes this connection to be indirect. The institutions of private law no doubt reflect a governmental aspiration or obligation to provide a just political and legal order. It hardly follows that tort and contract law aim for the doing

of justice in each case. Rather, when tort and contract law operate properly in cases where claims have been made, persons are being empowered to obtain recourse— as they are entitled to be empowered— regardless of whether the terms on which recourse is provided amount to the doing of justice as between plaintiff and defendant.

As our use of the word ‘entitled’ in the previous sentence indicates, civil recourse theory, like corrective justice theory, is deontological. But it is deontological on a roughly contractarian model, rather than a justice- seeking or teleological model. Part of what earns a legitimate state the allegiance of the governed is its being structured on terms, and operating in ways, that demonstrate a certain degree of solicitude for the interests of each member of the governed. Law that provides civil recourse is one way in which a state can demonstrate such solicitude. A body of law such as tort law is concerned to vindicate rights of individual empowerment. In this context, the judge’s role is to serve (along with the jury) as adjudicator of the authenticity of such demands, and to provide the anchor of authority that render such demands enforceable. In tort and contract law, justice is respected by ensuring a kind of empowerment, not by seeing to it that just results are realized in each case.

Finally, to reiterate and emphasize a point made earlier that will be important for subsequent discussion, although legal right holders are entitled to court- ordered remedies for violations of these rights, under the scheme of civil recourse instantiated in Anglo- American common law, the right holder’s remedies are, overwhelmingly, limited to awards of money damages. (Court judgments such as those requiring the return of personal property are relatively rare, and do not involve an order enjoining the defendant to perform or refrain from performing some action on pain of court sanction.) To be sure, courts and legislatures enjoy leeway to choose among different rules for determining appropriate damages awards, so long as the rules provide for damages in amounts that plausibly can be understood to amount to genuine redress. They need not limit tort plaintiffs to ‘make- whole’ damages, for example. Still, recourse at law has historically been limited to damages.⁸

B. From Law to Equity

While civil recourse theory can plausibly claim to fit Anglo- American tort and contract law, it seems to offer little purchase on equity, at least under standard conceptions of what it means for a court to do equity. This is no coincidence. Indeed, it is precisely because the theory does a good job of capturing the terms on which courts exercise their authority to make and apply private law that it does not capture the terms on which courts exercise their authority to do equity. In particular, three distinguishing features of courts’ equity jurisdiction jump out as not fitting the civil recourse model.

The first is that individuals who bring claims in **equity** do **not**, strictly speaking, **possess rights** of action. In other words, they do **not come to court** claiming an **entitlement** to relief. **Rather**, in the manner of a **petitioner**, they **request it**. Instead of asserting a **legal power** over the defendant **that the court is bound to authenticate**, **equity** claimants **ask** the court to act **for their benefit**.

The second and related departure from the model of private law, understood on a civil recourse view, is that **equity** courts **enjoy leeway** that courts of **law** do **not**. In **deciding** whether to grant equitable relief, courts **assert** a power and indeed a **responsibility** to exercise **substantial discretion**. Courts of **law** make **neither of these assertions**. This is **because any claim to discretion** of this sort is **fundamentally inconsistent** with the **idea of a plaintiff being entitled** to have a court heed its institutional duty to enforce her demand for recourse once the basis for the demand is proven. Conversely, the **discretionary** aspect of equity fits **hand in glove** with the **petition- like character** of **complaints** in equity. Here, complaints set forth reasons why a court should **choose** to exercise its power. In **law**, the plaintiff **demand**s that the defendant pay a certain amount and asks the court to authenticate the legitimacy of, and enforce, that demand.⁹

It is important not to overstate the foregoing pair of contrasts. It would be silly to claim— and we do not claim— that suits seeking to vindicate legal rights involve some sort of automatic or mechanical judicial ratification. Even plain- vanilla tort and contract cases call on judges (and sometimes juries) to make judgment calls on various issues of law and fact. Likewise, in hard cases, judges must craft rules defining causes of action and affirmative defences on the basis of contestable arguments of precedent, principle, and policy. Moreover, legislatures and courts obviously have adopted procedural, evidentiary, and remedial rules that both empower and constrain claimants at law: a claimant who fails to bring her breach- of- contract claim within the relevant limitations period is not entitled to any relief.

These qualifications notwithstanding, there is a **regulative ideal** for claims sounding in private **law** that does **not** **apply** to claims for **equitable** relief. When, in accordance with applicable procedural, evidentiary, and substantive rules, a plaintiff establishes that the defendant's conduct amounted to a **violation of her legal right**, the plaintiff is **entitled** to a **remedy**. It is **not open to a court of law** to conclude that the plaintiff has **proven her** tort **claim**, and that the defendant has **no** affirmative **defences**, **yet** then **withhold judgment**.¹⁰ Claims in **equity**, as we are defining it, **do not operate under such an ideal**, and claimants in equity enjoy no equivalent entitlement. Even if they establish that they have suffered harm as a result of a certain kind of injustice done to them, they may still be denied relief.

A third difference pertains to the remedies granted by courts of equity. An injunction is a command from a court, and the failure to comply with that command constitutes contempt of court. Back when there were separate courts of equity, those courts 'would tell people what to do— exactly what to do, on pain of imprisonment or contempt'.¹¹ By contrast, a money judgment entered by a court of law is an authentication of the defendant's legal position as a debtor. A court's authority to do equity remains a discretionary power. When courts apply law, they are following through on a standing commitment to maintain legal relations in accordance with an equality- based allocation of legal powers to those who have been wronged, or to whom contractual duties have been breached, or from whom property has been taken.

Again, a caution is in order. For purposes of exposition, we are at the moment envisioning law and equity operating in completely separate spheres: either a claimant proceeds with her legal claim, or she seeks relief in equity. In reality, as we discuss below, the two modes of judicial decision- making overlap. In certain instances, for example, a court might, on equitable grounds, deny relief to a claimant who proves that she has suffered a legal rights violation. In these cases, equity intervenes into the domain of law, blocking the law from operating on its own terms. The courts' authority to apply and make law provides them with no basis for denying valid legal claims. However, their equitable authority authorizes them (on certain occasions) to decline to enforce valid legal claims in the name of avoiding an injustice between or among affected parties.

When these three features of equity are taken together, it becomes somewhat less surprising that, initially, the officials charged with doing equity were different from those who adjudicated claims at law, and that the former acted on terms more in keeping with what today would be called the 'executive' branch of government than did the officials charged with applying law.¹² Sitting in equity, a court does not adjudicate claims between two private parties in the way that courts hearing private law disputes do. It entertains requests for appropriate governmental interventions in favour of the 'petitioner'— exercises that require the intervening actor to possess a certain kind of authority. Arguably, that is what the Chancellor was, and the Chancery was a place for hearing such requests.

III. Types of Equitable Claims

Thus far, our account of the distinctiveness of court's equitable authority has operated at a high level of abstraction. We now elaborate it by considering some familiar examples of courts doing equity. These cases hardly exhaust equity's domain. But they are central cases, and thus appropriate examples on which to focus. In each, we argue, **the claimant does not assert a legal entitlement to** **recourse**, but instead seeks to invoke the court's equitable authority to address an **injustice** that arises **out** of the **operation of law**, and that has resulted, or stands to result, in a **particular hardship** for the claimant. Of course, equity cases remain cases in which courts are required to adjudicate between two or more parties. And, indeed, with doctrines such as unclean hands and laches, equity courts are quite attentive to the posture of the litigation and the status of the litigants before them. Still, their role in these cases is not to validate the plaintiff's demand but to see what ought to be done according to equitable principles.

A. Ordering the Unwinding or Reformation of a Transaction That, While a Valid Exercise of Legal Powers, Works an Injustice against the Claimant

The chestnut of *Riggs v Palmer* nicely illustrates a category of equity case.¹³ *Riggs* is famous for the majority's morally infused interpretation of New York's inheritance statutes. Less commonly noticed is the posture of the litigation. The plaintiffs were the daughters of the testator, Francis Palmer. They sued the murdering heir, Elmer Palmer (Francis's grandson), along with the administrator of his grandfather's estate, to have the will 'cancelled and annulled'.

Although the majority and dissenting opinions are not as clear as they might have been,¹⁴ it seems quite likely that the plaintiffs sought relief as a matter of equity.¹⁵ Their suit did not challenge the validity of the will under statutes defining the procedures for executing a will.¹⁶ There was no claim, for example, that Francis's will, under which Elmer inherited, had been secured by fraud, or that Francis was incompetent at the time his will was executed. More to the point, it was clear that the daughters, as mere intended beneficiaries of a planned will that Francis never had a chance to execute, were not entitled to have a court recognize their legal right to inherit— they had no such right.¹⁷ Nonetheless,

the daughters sought relief, arguing, among other things, that ‘Elmer Palmer is estopped by his own conduct from claiming the title to his property, or [from claiming] that the condition upon which he takes has, in contemplation of law, happened.’¹⁸ In short, they maintained that it was a crucial fact that the concededly valid will was only triggered by an act of heinous misconduct by Elmer, seeking to secure for himself assets that otherwise would have gone to them. This fact provided grounds for a court sitting in equity to do justice by, in effect imposing a constructive trust on Elmer’s inheritance.

The Court, of course, accepted the invitation, invoking its authority to give the state’s inheritance statutes an ‘equitable construction’.¹⁹ Indeed, the majority opinion cites Blackstone for the proposition that a court in equity is ‘at liberty’ to act as if the statute did not address the question at hand, thus leaving it free to order a transfer of assets from Elmer to the daughters.²⁰ Needless to say, the relief provided by the court— an injunction— attests to the equitable posture of the case.²¹

In short: the claim in Riggs invoked the Court’s equitable jurisdiction rather than its legal jurisdiction. The claimants could not and did not assert a legal right to inherit and did not ask the court merely to authenticate and enforce such a right. Rather, they alleged that Elmer stood to benefit unjustly, and at their expense, from a perverse invocation of applicable legal rules. As New York’s inheritance statute contained only general language (and thus said nothing specific about the case at hand), the Court concluded that it could grant the plaintiffs’ request and order ownership transferred without violating the law. The relief it provided thus consisted of an order invalidating a transfer effected by an otherwise valid exercise of legal powers.

Another New York chestnut— Meinhard v Salmon— provides an example of an equity case that falls within the present category.²² Meinhard provided funds to Salmon for use in improving commercial space that Salmon had arranged to lease for a period of twenty years from Gerry. Meinhard was essentially a passive investor; Salmon was in charge of renovating the space and putting it to profitable use. The two were to share profits according to a formula. Towards the end of the lease period, Salmon, without informing Meinhard, negotiated a new lease between himself and Gerry’s successor. When Meinhard discovered that Salmon had entered into the new lease solely on his own behalf, Meinhard sued to have Salmon’s interest in the lease held in trust as an asset of their joint venture.

Writing for the Court of Appeals, Chief Judge Cardozo affirmed lower court rulings in favour of Meinhard. Cardozo granted that Salmon had not acted with ‘a conscious purpose to defraud’.²³ Indeed, he suggested that Salmon had probably acted in good faith in supposing that he, as the active party in the co-venture, was entitled to negotiate a new lease for himself. Nonetheless, because Salmon was a fiduciary with respect to Meinhard, he owed him ‘undivided loyalty’— a demanding standard that he had not met.²⁴

Here the subject matter of the new lease was an extension and enlargement of the subject matter of the old one. A managing coadventurer appropriating the benefit of such a lease without warning to his partner might fairly be expected to be reproached with conduct that was underhand, or lacking, to say the least, in reasonable candor, if the partner were to surprise him in the act of signing the new instrument. Conduct subject to that reproach does not receive from equity a healing benediction.²⁵

Accordingly, the Court imposed a constructive trust— ‘the remedial device through which preference of self is made subordinate to loyalty to others’²⁶— by which Meinhard was deemed to own half the value of the new lease.

Cardozo has sometimes been criticized for projecting dated notions of chivalry and honour onto an ordinary commercial relationship.²⁷ And it is possible that he overstated the duty Salmon owed Meinhard, given their expectations of one another and the customary norms governing a business deal of the sort that they struck. Regardless, the case was decided on the basis of an equitable principle: namely, that— separate and apart from whether it constitutes the violation of a legal right— it is an injustice as between co-venturers for one of them to keep for himself a business opportunity that relates to their venture, and to which he gained access only by virtue of the legal powers he exercised as a co-participant in the venture.

B. Ordering a Transfer of Assets to Rectify an Unjust Pattern of Holdings

Equity courts sometimes act to prevent or unwind certain transactions that are defective— that should never have taken place— and that have generated an unjust pattern of holdings. Certain claims seeking to undo a conveyance based on a mistake fit this description.²⁸ In such cases, the recipient of the property might claim legal possession. But the courts of equity nonetheless would order the transaction undone to avoid an injustice.

Other instances of this category include actions for contribution. The notion of contribution is fundamentally equitable, involving as it does the idea of the fair sharing of a common burden.²⁹ Consider, for example, actions for contribution between or among tortfeasors. Merryweather v Nixan, a King’s Bench decision from 1799, arguably ruled that one of two tortfeasors who is made to pay a plaintiff’s entire damages has no legal right to contribution from the other.³⁰ However, subsequent decisions rendered by courts of equity in the US maintained that such a rule was inconsistent with the equitable nature of contribution, which calls for a judgment as to whether the equities in a particular case were aligned so as to warrant contribution. In the language of an 1823 Virginia decision, ‘courts of equity . . . admit contribution whenever the parties were originally subject, jointly, to the burthen, and are in aequali jure, and where the party claiming the assistance of the court is not precluded, from his own turpitude, from receiving it’.³¹ Writing in 1879, Melville Bigelow supposed that contribution between tortfeasors was available in equity unless they ‘engaged in some offense malum in se, or some directly intended, or actually known, breach of the law’.³²

Although by the time Bigelow was writing, courts of equity had developed rules of thumb as to when a tortfeasor's claim for contribution would be granted, because his 'right' to contribution turned on the court's assessment of the equities as between defendants, contribution remained equitable in nature.

C. Ordering Dismissal of a Valid Suit at Law on the Ground That Enforcement Would Amount to Abuse

A claimant can seek relief in equity when the application of prevailing legal rules stands to work an injustice with significant deleterious consequences for the claimant. As Henry Smith has trenchantly argued, many cases in this category involve appeals to courts of equity to block opportunistic exercises of legal powers.³³ In modern times, decisions of this sort often take the form of a court refusing to lend its aid to a plaintiff notwithstanding that the plaintiff has a legally valid claim. A powerful (though controversial) example of this phenomenon is found in another well-known Cardozo opinion: his dissent in *Graf v Hope Building Corp.*³⁴

An employee of the mortgager, a corporation owned and controlled by one Herstein, miscalculated a monthly payment, such that it was \$402 shy of the \$6,120 owed. Herstein made out checks for the incorrect amount to be delivered to the mortgagee, then left for a business trip. The employee discovered the computational error, but because Herstein was unavailable and the payment date had arrived, and because no one else was authorized to issue checks for the corporation, the employee submitted the checks to Graf, the mortgagee, with a note pointing out the error and indicating that it would be corrected promptly when Herstein returned from his trip four days after the due date for the payment. However, the employee forgot to bring up the matter with Herstein upon his return, and Graf, after waiting for the twentyday cure period specified in the loan documents, without warning or demand, accelerated the loan and commenced foreclosure proceedings. Immediately upon receipt of the notice of the foreclosure, Herstein tendered payment of the shortfall, which tender Graf rejected.

A majority for the Court of Appeals ruled that Graf was entitled to foreclose. Cardozo's dissent did not dispute this conclusion. Rather, it suggested that the judicial enforcement of legal rights created by covenants to a mortgage, as is true of all legal rights, is subject to equitable limitations. True, the law— and associated interests in stability and predictability— requires courts to enforce valid acceleration clauses according to their terms, especially when the relevant agreement provides a grace period to protect mortgagors against 'inadvertence and improvidence'.³⁵ Nonetheless, this case was sufficiently distinct as to warrant the trial court in 'refusing to co-operate with the plaintiff in the effort to collect the accelerated debt'.³⁶ It would allow Graf to take an 'unconscionable advantage of the letter of his bargain' for the courts to assist him in the exercise of his legal power to foreclose.³⁷

The omission to pay in full had its origin in a clerical or arithmetical error that accompanied the act of payment, the very act to be performed. The error was not known to the debtor except in a constructive sense, for the secretary, a subordinate clerk, omitted to do her duty and report it to her principal. The deficiency, though not so small as to be negligible within the doctrine of *de minimis*, was still slight and unimportant when compared with the payment duly made. The possibility of bad faith is overcome by many circumstances, of which not the least is the one that instantly upon the discovery of the error, the deficiency was paid, and this only a single day after the term of grace was at an end. Finally, there is no pretense of damage or even inconvenience ensuing to the lender. On the contrary, and this is the vital point, the inference is inevitable that the lender appreciated the blunder and was unwilling to avert it. From his conduct on the day immediately succeeding the default, we can infer his state of mind as it existed the day before.³⁸

In sum, the courts were entitled to refrain from ordering foreclosure, and should have refrained from ordering it, because doing so would work a substantial injustice by allowing the plaintiff to 'lay in wait', then opportunistically demand enforcement of his legal rights.

D. Ordering Actions Necessary to Vindicate the Legal Rights of the Plaintiff

In this familiar class of cases, a claimant enjoys an entitlement at law to money damages, yet, because of special circumstances, damages fail adequately to vindicate her legal right. Accordingly, the claimant seeks alternative or supplemental relief in the form of an injunction.

While it is commonplace today for courts to issue injunctions in certain classes of tort and contract cases, this pattern should not obscure the fact that injunctions are equitable in nature. When a court orders specific performance of a contract for the sale of land, or enjoins a nuisance, it is not, strictly speaking, fulfilling its obligation to provide the plaintiff with an avenue of civil recourse. It is doing equity. This is why, if the equities point strongly against the grant of an injunction, a court can decline to issue it, notwithstanding that the plaintiff has proven herself to be the victim of a breach of contract for the sale of land, or a nuisance. By contrast, if the plaintiff has proven her case (including her losses), no comparable judicial discretion exists with respect to the question of whether to award compensatory damages: the fact that a damages award in a breach-of-contract suit will work a massive hardship on the defendant, and confer only a modest benefit on the plaintiff, provides no ground for the court to decline to enter judgment on that award.

Even today, doctrinal evidence for this characterization abounds. An order of specific performance ordinarily issues only upon a finding that legal remedies are inadequate, and even then can be withheld if it granting it would work a significant injustice.³⁹ Likewise, an injunction that promises to work an undue hardship on the defendant will not be granted.⁴⁰ As noted, there is no comparable discretion at work when courts entertain claims as a matter of law.

IV. Recognizing Equity

Our effort to **isolate** the **distinct nature** of courts' authority to **do equity** is **not simply** a **fanciful intellectual exercise** or a **flirtation with legal history**. It has **practical payoffs** in terms of the **ability of courts and commentators to understand and apply law**. Or so we now claim. Two controversial American decisions— Moore v Regents of California and Shelley v Kraemer— exemplify the explanatory value of the law– equity distinction, as we have cast it.

Moore was litigated in the California Supreme Court at a time when that court was famous for taking a flexible and pragmatic approach to tort law. Yet, in a fractured decision, even it struggled to identify what, if any, tort had been committed. The majority ultimately 'fudged' the result by simultaneously recognizing a claim for the informed consent variety of medical malpractice and a claim for breach of fiduciary duty. In light of the framework we have sketched above, however, Moore is arguably more cleanly cast as granting equitable relief (rather than providing redress for the violation of the plaintiff's legal rights).

According to the pleadings in Moore, Dr Golde, while treating Moore for leukaemia, determined that cells produced by Moore's body might have commercial value. Thus, throughout the treatment, which included a splenectomy followed by years of postoperative care, Golde saved blood and tissue that he removed from Moore. During this time, Golde joined others in a profitable business venture that developed clinical applications from the cells. Golde never informed Moore of his research and commercial interests.⁴¹ Moore later brought suit against Golde, as well as the researcher with whom Golde was working and the university that owned and operated the medical centre out of which Golde practised.

Moore's complaint asserted thirteen causes of action ranging from fraud and conversion to the performance of medical procedures without informed consent ('informed consent'), breach of fiduciary duty, and unjust enrichment. A majority of the justices ruled, confusingly, that Moore's informed consent and breach of fiduciary duty claims, though pleaded separately, amounted to two assertions of a single and valid claim.⁴² In so ruling, the majority also rejected Moore's conversion claim, reasoning that his cells and tissue were not property that was taken from him. Separate concurring and dissenting opinions primarily took issue with the majority's rejection of the conversion claim.

Like many notable judicial decisions, Moore is fascinating because it raises issues at the intersection of multiple legal domains: contract, tort, restitution, and— we would submit— equity. Part of why Moore lends itself to being described as equitable is a matter of timing. It was a case of first impression, which is why the complaint offered more than a dozen grounds for liability. The Court thus found itself attempting to make a judgment about certain questions of interpersonal justice at a moment when academic medicine was just becoming increasingly associated with commercialization. Given the situation in which the decision was rendered, as well as the terms in which it is expressed, it seems plausible to conclude (for reasons elaborated below) that the Court essentially granted Moore equitable relief rather than finding an actionable tort.

To be sure, the majority purported to hold that Moore had a claim tantamount to a malpractice claim based on a physician's failure to obtain his patient's informed consent to a course of treatment. However, as noted, the Court also maintained that this malpractice claim could alternatively be described as a claim for breach of fiduciary duty. Moreover, an informed- consent theory does not map neatly onto the facts alleged in Moore. Ordinarily, an informed- consent plaintiff must prove that the physician's failure to provide information about the risks of a procedure induced her to undergo an injury- generating procedure that she otherwise would have foregone. There may not have been any such inducement in Moore, and in any event the majority did not specify such inducement as a condition of recovery.⁴³ Instead, it seemed to treat the nondisclosure itself as wrongful.⁴⁴

In sum, **the problem with** treating Moore as a **tort case** is that, although it involved **wrongful conduct**— a doctor, for reasons of material self- interest, knowingly withholding information from a patient about certain dimensions of his treatment— **there was nothing that amounted to an injuring** of Moore by Golde. And **where a wrongful act with the potential for injury does not ripen** into injury, **there is no right of redress**. Golde's wrongful conduct, one might say, ripened into profits for Golde, not a setback for Moore.

But tort— and private law more generally— is not the only basis on which a claimant can seek relief. **There is also equity**. Like Riggs and Meinhard, Moore is a case in which the defendant profited by acting wrongfully in relation to the plaintiff. Moore's **complaint** thus had **less** to do with his **having suffered the violation of a recognized legal right** and **more** to do with Golde's **having inequitably used** the occasion of his (appropriate, authorized) **treatment** of Moore **as an opportunity to exploit**. As courts of **equity** have **always done**, the Moore court **responded** to a claimant seeking **to undo an injustice** involving an exploitation of legal powers and privileges. Moreover, in classic equitable fashion, it did so in effect (though not in word) by imposing a constructive trust on profits gained by the exploiting party at the expense of the exploited. Judges who

were more attuned to courts' distinct authority to do equity would have been better able to explain the basis of its decision, and to fend off the conversion issues that dominated Judge Mosk's dissent and have been debated by scholars ever since. Although the Court obviously recognized there was a fiduciary duty aspect to the case, it could not bring itself fully to embrace the equitable nature of its decision, and thus offered an unstable law- equity hybrid, rather than announcing clearly that the plaintiff's claim sounded in equity, and that a constructive trust (or disgorgement) was the appropriate remedy, not damages.

The United States Supreme Court's opinion in *Shelley v Kraemer* presents a still- more famous and more freighted puzzle for jurists.⁴⁵ We suggest that, like *Moore*, its puzzling aspects dissipate when it is viewed as a decision in equity.

The Equal Protection Clause of the Fourteenth Amendment to the United States Constitution bars discrimination on the basis of race. However, this right against racial discrimination is a right against government— discrimination by private actors acting in a private capacity does not violate the Equal Protection Clause. There must be 'state action', ie, discriminatory treatment imputable to an official or a private individual acting in something like an official capacity. The operation of a privately owned business, even a business that clearly benefits from public services (police, fire, roads, the enforcement of trespass laws, etc), ordinarily will not count as state action.

Although the state action doctrine is longstanding, in 1948— six years before *Brown v Board of Education*— the Court issued *Shelley*, a decision that seemed either to ignore the doctrine or to portend its demise. The plaintiffs, residents of a neighbourhood of St Louis, brought suit to enjoin the sale of a property in the neighbourhood to an African- American buyer. In a companion case from Michigan, *McGhee v Sipes*, the plaintiffs went further, seeking a judicially ordered ejection of the African- American buyers of a home that the buyers had already occupied.⁴⁶ In both cases, the basis on which plaintiffs argued for judicial intervention was a restrictive covenant specifying that the properties in question could not be occupied by non- whites.

Before the Supreme Court, the buyers argued that an order enjoining the sale and purchase of property on the basis of a racially restrictive covenant amounted to state action in violation of the Equal Protection Clause. Doctrinally, it was certainly open to the Court to reject this argument. Indeed, the 1926 case of *Corrigan v Buckley* had refused to invalidate racially restrictive covenants applicable to land located in the District of Columbia.⁴⁷ In *Shelley*, however, the Court overturned the respective decisions of the Missouri and Michigan high courts ordering injunctive relief. The apparent relaxation of the state action requirement in *Shelley* and *McGhee*, followed by decades of decisions insisting that the application of the Equal Protection Clause is limited by a robust state action requirement, has struck some commentators as incoherent or unprincipled.⁴⁸

A detailed reconstruction of the state action doctrine is beyond the scope of this chapter. Yet, on the narrower question of whether that issue merited special treatment in *Shelley*, the Court adopted an entirely defensible position. In both *Shelley* and *McGhee*, private actors had, through the exercise of facially valid legal powers, imposed restrictions on the alienability of properties in formal legal documents, thereby creating a basis for the plaintiffs to claim that the sellers were under a legal duty to refrain from selling their lands to non- whites. Yet the plaintiffs had called upon the courts to do something special in these cases, namely, to enjoin (and indeed undo) private transactions. In short, the plaintiffs were asking the courts to exercise their equitable authority, not their legal authority. This makes all the difference in the world, and not simply because a court sitting in equity is entitled to look to see whether claimants have clean hands, and to conclude that a claimant who seeks assistance to maintain a blatantly racist practice has unclean hands.

As we noted above, the power of courts when doing equity includes a distinctly executive dimension. The *Shelley* and *McGee* plaintiffs did not have a legal power to stop private land sales from whites to non- whites. Instead, they had only the ability to request that a court of equity intervene to that effect. In turn, for a court to enjoin such a transaction is for it to decide whether to issue a command rather than deciding whether to ratify or validate a claim of right. Because this special mode of judicial action has the flavour of an executive branch action, it can credibly be treated as state action without requiring the conclusion that all judicial decisions concerning private interactions amount to state action. As *Shelley* expressly recognized, the restrictions built into the relevant covenants could only be realized through 'the active intervention of the state courts, supported by the full panoply of state power'.⁴⁹ As such, the judicial action requested and granted 'b[ore] the clear and unmistakable imprimatur of the State'.⁵⁰ Understood to hold that a court doing equity amounts to state action, *Shelley* makes a good deal of sense.⁵¹

V. Blurred Lines

We have argued that a court's authority to **apply law** is **distinct** from its authority to **do equity**. And we have given examples designed to convey what, on our view, it means for a court to do equity. However, law and equity have always interacted in complicated ways. In certain respects, law has claimed primacy over equity, as for example, when the adequacy of available legal remedies provides a ground for denying equitable relief. In other respects, equity has claimed primacy over law— the very point of Cardozo's *Graf* dissent.⁵² With the fusion of courts' law and equity jurisdictions, the distinction has become even more difficult to track. In fact, various features of law, equity, and our court system have operated to blur the lines. This is part of what makes the task of isolating equity's distinctiveness so difficult.

Today, of course, a court can entertain and validate assertions of legal right that are pressed through procedural devices born of equity. And the same court can provide both legal redress and equitable relief. In such a world, it is difficult to maintain a robust sense of the difference between a claim that sounds in law and one that sounds in equity. Difficult, but not impossible. The judges of Cardozo's time, after all, operated

in a post- merger world but managed to keep sight of the distinction. That judges today have a harder time seeing it is in part attributable to changes in how lawyers and legal scholars think about law. In particular, with the waning of the idea that private law forms a circumscribed domain of legal rights and duties, the space for a separate domain called 'equity' threatens to disappear.⁵³

A further difficulty is that law and equity operate in partially overlapping spheres. Just as certain conduct might fit the definition of two torts (for example, some forms of medical malpractice arguably amount both to a battery and to negligence), there is a good deal of conduct that can be described both as a violation of legal rights and an injustice of a sort to which equity might well attend. This overlap explains why there is a need for meta- rules governing the relation between them. And this body of meta- rules is itself complex, ranging from the hoary 'adequate- remedy- at- law' rule to the notion that a court sitting in equity will sometimes decline to enforce a valid legal claim.

There are two subtler reasons why it is difficult to distinguish law and equity in the manner we have described. First, something like a 'law of equity' has naturally emerged as courts have done equity in particular cases.⁵⁴ Like courts of law, courts of equity have established procedural and substantive rules, along with maxims and presumptions. No doubt they have developed these out of a notion of fundamental fairness— of treating like cases alike. A court that grants a petition for relief on a certain set of facts will rightly feel some pressure to grant a petition based on comparable facts. For these reasons, there has emerged a law applied by courts sitting in equity. This is in part why it makes sense today to speak of 'equitable wrongs', 'equitable defences', and 'equitable remedies'. Reasons of even- handedness tend, over time, to strengthen the assertion of future equity claimants that they have something like an entitlement to judicial intervention.

Second, even as equity bends towards law, law bends towards equity. Common law legal rights and duties evolve. And they sometimes do so in a manner that reflects reasons characteristic of equity. This occurs at the level of kinds and at the level of particularized judgments. The doing of equity, in other words, can give rise to new law. When it does so, it closes off gaps in which equity operated (though it might also conceivably open up new ones).

One example of an evolution from equity to law involves the emergence, in the early twentieth century, of the tort of appropriation of likeness— a legal cause of action that was later identified by William Prosser as one of four privacy torts.⁵⁵ In the standard case, a plaintiff alleging this tort asserts that the defendant has, without her permission, used her image or likeness in advertising a product or service. The defendant's wrong is to associate the plaintiff with a commercial venture with which the plaintiff does not wish to be associated, and to have given the plaintiff public visibility that she does not wish to have, thereby interfering unduly with her ability to control when and how she presents herself to the public.

Among the first decisions to recognize the appropriation- of- likeness tort is the Georgia Supreme Court's 1905 decision in *Pavesich v New England Life Insurance Co.*⁵⁶ Without permission, the defendant used a photograph of the plaintiff in a newspaper ad for its life insurance policies, adding a fabricated quotation stating that the plaintiff was grateful to have purchased one of its policies. The plaintiff sued for damages, alleging defamation and invasion of privacy. Conceding that it had not previously recognized invasions of privacy as tortious, the Court nonetheless allowed the claim, concluding that the defendant had violated the plaintiff 's right to 'be let alone',⁵⁷ ie, his right to determine, within limits, when and how he would 'exhibit his person in [a] public place'.⁵⁸

Although entering new legal territory, *Pavesich* took its cues from equity, which had long been available to remedy breaches of confidence. In particular, it noted English and American cases in which courts had enjoined the publication of information or images on the ground that the defendant had obtained them with the condition that they be kept confidential, including the well- known English case of *Prince Albert v Strange*.⁵⁹ More directly on point was *Corliss v EW Walker Co.*,⁶⁰ in which the defendant published a biographical sketch of the plaintiff 's deceased husband and sought to sell it along with a photograph of the husband. A federal court in Massachusetts declined to enjoin the publication of the book, but enjoined publication of the photograph on the ground that it would violate a confidence placed in the photographer not to distribute the image except as specified by his subject.

As articulated in the later English decision of *Coco v AN Clark Engineers*,⁶¹ an equitable action to enjoin a breach of confidence has much in common with breach of fiduciary duty claims of the sort discussed above in cases such as *Meinhard and Moore*. The gist of the complaint is that the relationship of confidence between defendant and plaintiff— a relationship that the law, by empowering enforceable agreements, helped to shape— limited the defendant's freedom of action with respect to the subject matter of the confidential relationship, and that actions taken outside of those limits, if they work an injustice to the plaintiff, can be enjoined at the behest of the plaintiff or can generate for the plaintiff an entitlement via a constructive trust to an interest in any transactions or arrangements emerging out of the unauthorized action.

In *Pavesich*, by contrast, the focus is not whether unauthorized conduct by the defendant can be blocked, nor whether the effect of the exercise of legal rights and powers must be revised. Rather, the defendant's conduct is deemed to be a wrongful injuring of the plaintiff, for which the plaintiff can seek and obtain redress in the form of compensatory damages. The complaint asserts that there has been a breach of a primary duty and a violation of primary right recognized by tort law— the duty to refrain from publicly displaying, without permission, another's image in aid of one's commercial venture and the right not to have one's image so displayed. Today, a century after *Pavesich*, misappropriation of likeness is the name of a well- established tort. With the recognition of this tort, the boundaries of the line between law and equity shifted, as they have done repeatedly throughout Anglo- American legal history.

While decisions in equity sometimes serve as a springboard for the emergence of a new legal wrong, equitable decisions sometimes generate legal change in a more focused and forced manner. Here, the courts recognize that the provision of equitable relief in a particular scenario

practically necessitates modification of legal rules addressing that scenario. The United States Supreme Court's opinion in *Barrows v Jackson*,⁶² decided five years after *Shelley v Kraemer*, nicely illustrates how the doing of equity can sometimes necessitate changes in law.

Like *Shelley*, *Barrows* addressed the issue of racially restrictive covenants. However, the question was not whether to enjoin a sale to non-whites in violation of such a covenant, but instead whether a state court could award damages to one white signatory to a covenant for breach of the covenant by another white signatory. Some state courts had concluded that *Shelley* did not rule out such liability, while others had reached the opposite result. For its part, the Court in *Barrows* was unwilling to draw what it regarded as a conspicuously fine line that promised to generate something close to an incoherent body of law. Just as in *Bolling v Sharpe*,⁶³ for example, the Court could not permit de jure segregated schools in DC after forbidding it in the states,⁶⁴ so in *Barrows*, it could not permit damages actions for breach of racially restrictive covenants to achieve what would have been achieved had *Shelley* gone the other way.

That *Barrows* was prepared to deem a damages award grounded in a claim of legal right— as opposed to injunctive relief grounded in equity— as 'state action' might seem to cast doubt on our explanation of why the Supreme Court ruled as it did in *Shelley*. After all, *Barrows* comes out the same way as did *Shelley* even though it did not present the issue of whether courts should exercise their quasi- executive equitable powers so as to enforce racially restrictive covenants. But these doubts are misplaced. One of the central claims in this part of our analysis is that the judicial grant of equitable relief sometimes supplies reasons for subsequent courts to adjust legal rules so that the legal system as a whole better comports with basic desiderata of coherence, evenhandedness, and justice. It is not so much that there is the sort of direct 'state action' in *Barrows* that one finds in *Shelley*. It is rather that judicial decisions that properly count as 'state action'— including, in some circumstances, decisions involving the power to grant injunctive relief— can exert a gravitational force on nearby legal rules.⁶⁵

VI. Conclusion

Private **law** recognizes **legal rights** that, when violated, generate in victims an entitlement to judicial assistance in obtaining redress from the rights violator. When operating as private **law** tribunals, **courts**, in accordance with the principle of civil recourse, **adjudicate** the question of whether the plaintiff has **proven herself** to be the **victim** of a **legally recognized wrong**. If she has, the court— so far as the **law** is concerned— **must validate** her demand for **redress**.

Equity is **not a scheme of rights and duties** in the same sense. To be sure, a court operating in this mode **entertains complaints**. But the complainant is not **demanding** something from the court to which she is **entitled**. She is **instead requesting** that the court intervene to **rectify** a certain kind of **injustice perpetrated through** the **law**.

So understood, **equity** is **not a magic wand** available to courts whenever **any** manner of **injustice** is brought to its attention. **Nor** is it **merely** a **carefully honed counterbalance** to the exercise of law. It is a **distinct head of judicial authority**. When private law by its own terms misfires— when it leaves a void, when **legal rules** of ownership give **rights** in property to persons who clearly should **not have them**, when **legal powers** are **abused** or exceeded, or when **legal remedies** fall well **short** of protecting or vindicating that which they purport to protect or vindicate— there is a basis for requesting **equitable relief**.

Although **law and equity are** thus **fundamentally distinct**, over time they inevitably become entangled. **Law** **incorporates** rules and **doctrines developed in equity**. This is why modern private law includes doctrines such as equitable tolling and equitable estoppel. And, as certain **fact patterns** are recognized as warranting equitable relief, **equity becomes more law- like**. The development of these **patterns** of equitable relief in **turn** encourages courts to **recognize new legal rights, duties**, powers, **and liabilities**.⁶⁶ **None of this is to say**

that the law– equity distinction has vanished or is vanishing

It is merely to explain why it is often difficult to isolate when, within a complex legal system, a court is exercising its authority to apply law and when it is exercising its authority to do equity.

By enabling courts to respond to instances in which law— a set of rules and principles established to help ensure the maintenance of something approximating a just social order— unjustly works a hardship on the person seeking relief, equity serves a gap- filling role, moves the law forward, and sometimes create occasions for new equitable interventions. To **lose sight** of equity is thus to have an **incomplete understanding of Anglo- American legal systems**, to deny individuals the range of opportunities for obtaining judicial relief available to them, and to ignore an **important driver** of the **growth of the law**.

That's best:

1. PREDICTABILITY---we have intent to define broadly, and advocates prove distinction between IP in rights and equity.

2. LIMITS and 3. GROUND---any other interp justifies affs which have incidental benefits to IPR-holders, regardless of whether there is direct linkage---any action in the economy could conceivably benefit a rights-holder, making neg preparation impossible.

Functional limits cap their offense---lit base is huge.

Irit **Samet 18**, Professor in the Dickson Poon School of Law, "Equity's Own Room," Equity: Conscience Goes to Market, Oxford University Press, 2018, pp. 1–76

Taking sides in the dispute about the **feasibility of 'fusion'** can be **intimidating**. This is not only because of the vast areas of private law that are involved— most of the law of obligations and property for starters— but also **because of the extraordinarily heated passion** that is **associated with the debate**. While **protectors of Equity's independence** were **accused of 'angry fundamentalism'**, the idea that **Equity and Common Law** should be **amalgamated** was described as **'evil'**.⁵ All this rhetoric is, of course, hyperbolic and unnecessary. However, the **unusual storm of emotions** does **indicate** that **the question** of whether the **administrative fusion** of Equity and Common Law in the 1870s has ushered in a **brave new world** of **substantive fusion** is **(still)** at the **heart of our perception of private law**. Different common law **jurisdictions** which grappled with this problem reached **different conclusions**. And yet again, the rhetoric that accompanies the **decision** either way seems overboard when it **is portrayed as a reflection of core** national **values**: thus, the Australian insistence on preserving Equity as a dominant independent jurisdiction is seen as an expression of the mutual responsibility and community values of the settlers; while the enthusiastic embrace of fusion in the US is perceived as a manifestation of the individualism and free spirit that marks the American frame of mind (to which Equity is, presumably, unfriendly, if not inimical); the refusal of the English courts to interpret the Judicature Acts as calling for a substantial fusion was seen by one irritated Law Lord as yet another harmful expression of the 'innate conservatism of English lawyers'.⁶

Solvency---AT: Certainty---2NC

No 'certainty' deficit:

1. SUFFICIENCY. It's the same rule, pronounced by the same actor. It yields the same outcomes in every judicial proceeding.

It's NOT 'abnormal process.' Equity dates back to 14th Century England---everyone knows how to interpret it.

Compare it to the squo, NOT to the plan---it's a huge departure that creates massive new entitlements or obligations.

2. THE CP IS MORE CERTAIN. In complex areas like IP, law encourages gamesmanship and regulatory proliferation to close loopholes. Principles are better---regulated parties understand them and will respond in good faith.

Irit Samet 18, Professor in the Dickson Poon School of Law, "Equity's Own Room," Equity: Conscience Goes to Market, Oxford University Press, 2018, pp. 1-76

4.2 Prescription for certainty and consistency

Thus far, in my defence of the ex post morally infused equitable principles, I accepted the assumption that tightly specified rules increase legal certainty. Raz's observation that 'rules' ... are more certain than principles and lend themselves more easily to uniform and predictable applications' is taken as the premise of many inquiries into the correct balance between principles and rules, whatever their conclusion.²⁹⁰ Even the classical realists, as Hanoch Dagan shows, held deep respect for the requirement of predictability that is implied by the ROL ideal, and conceived of legal rules as promoting the worthy goals of the ROL.²⁹¹ However, when considering the sacrifice in terms of predictability that equitable standards may demand, we need to remember that empirical evidence does not necessarily support a direct linkage between the use of rules and high levels of legal certainty. On the contrary, in their ground-breaking work on the relationship between certainty and rules, John and Valerie Braithwaite argued that when we attempt to regulate 'complex actions in changing environments where large economic interests are at stake' ... principles are more likely to enable legal certainty than rules'.²⁹² This conclusion followed from a large study of the regulation of care-homes in the US and Australia in which the researchers compared the results of inspections which were based on a thicket of bright-line rules (in the US) with those that applied a nimble set of amorphous principles (in Australia).²⁹³ It turns out that a set of rules which attempts to cover every aspect of a highly complex human activity, such as caring for the elderly, yield unpredictable assessments of whether the rules have been complied with. As a result, the managers cannot know for sure what they need to do in order to secure a good inspection report, as much depends on the identity of the individual inspector and how he/she approaches the complex net of the applicable rules. In contrast, a minimal list of principles, some of which are as vague as the requirement to care for the inhabitants with 'dignity and compassion' and create a "home-like" environment for them, led to a set of far more unified and predictable inspection reviews. Presumably, managers of care-homes know very well what most people would consider a 'home-like' environment, whereas an administrator that engages in a frantic 'tick the box' exercise is much more likely to miss on some rules (exactly those the regulated may focus on if she is unlucky), and be in the dark as to the way different parts of the voluminous set of

rules interact. The authors conclude that 'there are **contexts** in which **standards** are **both more certain and more flexible**, more **uniform and more individualised** than rules'.²⁹⁴ A 'prudent' **combination** of rules and principles, where principles are to be followed in case of **contradiction**, the authors find, is the **best prescription** for a **high** score in **'predictability'**.²⁹⁵

One important reason why **rules often fail** to deliver the consistency and **predictability** which a 'government by rules' promises, says Braithwaite, is that **'wealthy legal game players aim for the penumbra**, [i.e.] **play the game** in ways that **expand the grey area** of the **'law'**'.²⁹⁶ In **dynamic areas**, where the **penumbra** of **uncertainty is relatively large**, the **'game-players'** deliberately exploit it to achieve goals that **undermine the** purpose of the **law**. And **when regulators rush to clarify** the **uncertainty** and **close the loopholes**, the result is often a **glut of rules** which **neither the law's subjects, nor its enforcers can master**, so that **enforcement becomes largely random**. This is another aspect of the phenomenon described by McBarnet, Whelan, and others in the context of financial regulations and tax law. Braithwaite's empirical studies help to shed light on the way in which an attempt by the lawmaker to **close loopholes** by **adding more rules** **undermines the very reason** for which **rules (rather than standards)** were **used in the first place**, viz. to **ensure** the **predictability** of legal results. Similarly, in the area of private law, the Law Commission of Victoria, for example, suggests that introducing **broad** unconscionability **principles** into contract law **will help to solve** the predicament of **'rules and qualifications designed to give precision** [which] exist in **such numbers** [that they] **produce uncertainty, cost and delay** in the resolutions of disputes'. The committee proposes to create a dual structure, whereby 'established rules of contract law [would be the] essential points of departure' but these will be qualified where 'the facts of the case makes invoking them unconscionable'.²⁹⁷

One argument against importing the Victorian Law Commission's view to England is that the Common Law courts' zealous devotion to the virtues of clarity and predictability generates a significant social good: it supports a lucrative line of export in the form of commercial litigation. As Hugh Beale explains:

Our courts handle many cases that have no real connection with England save that the parties have chosen that the contract should be governed by English law. This is often coupled with a choice of England and Wales as the jurisdiction. This 'law for export' has deliberately been kept even closer to the classical model than the law for domestic consumption.²⁹⁸

Conceding that this line of export is 'of huge importance to our economy', Terence Etherton nevertheless finds that it is a misguided basis for the suggestion that a concept of unconscionability that involves judicial discretion should not be incorporated into law that applies to businesses. This is because unconscionability, like dishonesty, 'is not a concept lacking in principle or certainty merely because it depends on the court's perception and application of an objective societal norm'; it is rather a **principle** which is **'clear and certain** even if its **application to particular facts** is contested and uncertain'.²⁹⁹ In that sense, he reminds us, **conscionability is not much different from canons of contract interpretation like 'reasonable' or 'commercial common sense'**, that depend upon the judges' **perception** of these **standards**. It is **exactly the flexibility of Equity that renders them so useful** and **conducive** for the **resolution of commercial disputes**. I end this section by noting that even Friedrich Hayek came to believe late in his life that **'judicial decision may in fact be more predictable** if the judge is **also** bound by **generally held views of what is just**, even when they are not supported by the letter of the law'.³⁰⁰

That's particularly true in IP---the CP creates sufficient clarity while discouraging gamesmanship.

Sean B. **Seymore 22**, Centennial Professor of Law and Professor of Chemistry, Vanderbilt University, "Unclean Patents," 102 B.U.L. Rev. 1491, September 2022, Lexis

III. POLICY CONSIDERATIONS

Reinvigorating unclean hands in patent law raises a host of policy questions. To what extent do traditional normative justifications for the doctrine align with current patent policy? Mindful of the policy norms, how should courts apply the proposed reinvigorated defense? This Part answers these questions.

A. Normative Justifications

Unclean hands is a controversial affirmative defense. Aside from ambiguous standards, 276applying it allows a defendant to get away with wrongful conduct 277and perhaps encourages wrongdoing (e.g., infringement). 278But as I discuss below, there are several normative justifications for applying it.

1. Court Integrity

In Precision Instrument, the Supreme Court stated that a court shouldn't be "the abet tor of iniquity." 279 Court integrity is the dominant goal or norm ascribed to unclean hands. 280Judge Learned Hand explained why: The doctrine is confessedly derived from the unwillingness of a court, originally and still nominally one of conscience, to give its peculiar relief [*1531] to a suitor who in the very controversy has so conducted himself as to shock the moral sensibilities of the judge. It has nothing to do with the rights or liabilities of the parties; indeed the defendant who invokes it need not be damaged, and the court may even raise it sua sponte. 281

This moralistic tenor and focus on the courts' own protection (rather than the defendants') distinguishes unclean hands from other affirmative defenses. 282

Admittedly, this justification doesn't explain why a finding of unclean hands should render a patent universally unenforceable. However, it may factor into the court's decision regarding whether to invoke the defense. 283

2. Public Interest

Historically, courts applying unclean hands only considered the plaintiff and defendant and ignored any harm to third parties. 284But the "strict duality" view 285evolved to take the public interest into account. 286This is true in patent law, where the Supreme Court noted in Precision Instrument that the public interest is "paramount." 287The doctrine "assumes even wider and more [*1532] significant proportions" 288in patent cases because patent rights are "issues of great moment to the public." 289

The Supreme Court's reasoning comes from the quid pro quo theory of patents previously discussed. 290An oft-touted justification for the patent system is that the public will benefit from granting the inventor the right to exclude in the rights-for-disclosure patent bargain. 291But sometimes the public doesn't recoup its end of the bargain due to patentee misconduct - some of which taints the property right ab initio. To illustrate, consider again the facts in Gilead, 292where the patentee's misconduct enhanced its legal position with regard to creating and enforcing patent rights on a drug. 293Specifically, the patentee's improper acquisition of information about the drug and shenanigans with its patent application "held the potential for expediting patent issuance and for lowering certain invalidity risks" in litigation. 294Left unredressed, the public would bear the social costs of the tainted patent - including reduced competition, higher prices, and hindered follow-on innovation. 295So if the court speaks by rendering a tainted patent universally unenforceable, that vindicates the public interest. 296

[*1533]

3. Deterrence of Wrongful Conduct

Finally, unclean hands can be justified for its deterrence function. 297As the argument goes, potential plaintiffs who want access to the courts (perhaps to enforce a patent) will be motivated to avoid conduct that might soil their hands. 298Of course, deterrence only works if the plaintiff is aware of the unclean hands defense and its detrimental implications. 299For example, Inventor who's tempted to surreptitiously inspect Competitor's prototype might think twice if Inventor knows that any resulting patents could be rendered universally unenforceable. 300

But applying unclean hands in patent law raises an overdeterrence problem. Patentees might take excessive precautions to avoid misconduct - especially if there's uncertainty about how the doctrine will be applied. 301This makes intuitive sense because (1) such efforts might impress a court analyzing an allegation of unclean hands 302and (2) unenforceability is a harsh result. 303Maybe it's not so much about excessive precautions but just staying clean. 304 [*1534] That said, it's possible that reinvigorating the doctrine could "deter ... [some] would-be inventors from patenting altogether" 305or push them to opt for trade secrecy in lieu of patenting 306- either of which might "rob[] society of the next great invention or [hide] the details of that invention from the general public." 307It's possible to allay some of these fears because the clear and convincing evidence standard makes unclean hands hard to plead and prove. 308To be sure, allegations of inequitable conduct dropped dramatically after Therasense heightened the standard to clear and convincing evidence. 309For these reasons and others set forth below, courts must carefully exercise discretion in rendering a patent universally unenforceable for unclean hands.

B. Discretion-Limiting Principles

How should the reinvigorated unclean hands defense be **applied** in patent **infringement suits**? Recall that in *Keystone Driller*, the Supreme Court stated that a judge can apply it when the plaintiff's alleged misconduct "has immediate and necessary relation" to the relief sought. 310That's helpful; yet in *Precision Instrument*, the Court stated that, "any willful act concerning the cause of action which rightfully can be said to transgress equitable standards of conduct is sufficient cause for the invocation of the maxim ... "

311What a judge views as **inequitable** might be **idiosyncratic**; 312thereby giving unclean hands an **"amorphous[] and open-ended quality."** 313This can cut two ways. On one hand, [*1535] it **raise**s concerns about **unfettered judicial discretion**. 314 On the other hand, **somewhat shadowy rules** help **prevent wrongdoers** from **securing a road map** for **how to evade the law**. 315While **both** views have **merit**, below I offer five [*1536] **discretion-limiting principles** 316for judges **apply**ing the proposed reinvigorated unclean hands defense in patent cases.

First, **judges must find a sufficient nexus** between the alleged **misconduct** and acquisition of **the** underlying **patent** before applying the doctrine. **This is the basic limiting principle** of the proposed approach. 317Having unclean hands asserted at a matter of course would increase litigation cost and complexity, reduce the likelihood of settlement, burden the courts, **and** undermine the doctrine. 318This is exactly what happened with inequitable conduct before *Therasense* **raised the standard**s **for** asserting the defense. 319

Second, judges should be vigilant of the possibility of **abusive or distracting assertions** of unclean hands. This possibility **didn't escape** the **Gilead court**:

We are conscious, as any court presented with a defense of unclean hands must be, both of the judicial system's vital commitment to the standards of probity protected by the doctrine and, also, of the potential for misuse of this necessarily flexible doctrine by parties who would prefer to divert attention away from dry, technical, and complex merits issues toward allegations of misconduct based on relatively commonplace disputes over credibility. 320

The possibility of the unclean hands defense being **overplayed** and appearing in nearly every infringement suit **would** give the patent system **considerable pause** and raise concerns about its becoming an "absolute plague" 321like inequitable conduct pre- *Therasense*. 322Trial **judges can rely on fee-shifting** [*1537] **mechanisms** 323or **procedural devices** like motions to **strike**, to **dismiss**, for **summary judgment**, and under **Rule 11** of the **Federal Rules of Civil Procedure** **to deter or sanction abusive behavior**. 324

Third, judges shouldn't allow unclean hands to **divert attention** from the **merits** - the infringement and potential invalidity of the patent-in-suit. 325 While the alleged misconduct might concern the patent with respect to acquisition of the property right, the substantive issues of infringement and invalidity are irrelevant to the doctrine's application. 326 So, judges should manage the litigation to ensure that the time and energy spent on the defense don't detract from or thwart correct resolution on the merits. 327 Relatedly, the patentee's alleged misconduct shouldn't "cast a dark cloud" over the patent's validity or infringement (which could be the defendant's litigation strategy). 328 Infringement and validity don't depend on the patentee's honesty or lack thereof - to be sure, "an old, useless, or obvious invention is invalid whether the patentee acted honestly or not." 329

Fourth, judges shouldn't allow unclean hands to serve as an **end run** around the **heightened proof** required for **inequitable conduct**. Although the defenses are related, 330 there shouldn't be overlap in the types of alleged misconduct covered by each defense. Inequitable conduct occurs when a patent applicant misrepresents or omits information material to patentability with the specific intent to mislead or deceive the Patent Office. 331 Unclean hands encompasses other misconduct, 332 including (in the case of universal unenforceability, as proposed herein) misconduct related to the acquisition of a patent. 333 Thus, a [*1538] defendant can't successfully prove both inequitable conduct and unclean hands for a given act of putative misconduct. So, an alleged infringer armed with facts that tend to show the patentee's misconduct before the Patent Office - but less than clear and convincing proof of materiality or intent required for inequitable conduct - can't recharacterize that conduct as unclean hands. 334

Fifth, judges must recognize that **public policy** may **warrant reaching the merits** - thereby **overriding** an assertion of unclean hands. 335 In patent cases, there are times when "legislative policy and public interest demand that the **action** be **heard**" **despite** the patentee's **misconduct**. 336 For example, it might serve the **public interest** to **reach the merits** of a case involving the validity of patent covering a COVID-19 vaccine or an alleged infringer's particularly egregious conduct - notwithstanding the patentee's uncleanliness. This would give the unclean patentee a fortuitous reprieve from a court rendering the tainted patent universally unenforceable. Such cases will inevitably require judicial balancing. 337

3. REGULARITY SOLVES. Equitable proceedings follow principles and explain the reasoning for their decisions---same as the AFF.

Irit **Samet 18**, Professor in the Dickson Poon School of Law, "Equity's Own Room," Equity: Conscience Goes to Market, Oxford University Press, 2018, pp. 1-76

Furthermore, **any potential** drop in the system's score in a Rule of Law test, and a consequent **chilling effect** that might have **followed** from interpreting the conscionability category as injecting **moral values** into the **law**, is **significantly mitigated** by the **highly regimented way** in which the Court of Equity applies the conscionability **standard**. The attack on the use of conscionability as a conduit for **moral standards** draws much of its **appeal** from **depicting it** as an instrument for **bypassing** the **machinery of** the **doctrines** in which it operates **in favour of** **intuition**-based adjudication. However, the **courts have** almost **universally rejected this expansive view** of the discretion it embodies **in favour of** an understanding of Equity as 'a **thoroughly principled system** . . . **not** a **general liberty** for the court to **decide cases as it thinks fair**'. 309 As we will see in the next few chapters, the **moral concepts** which Equity employs (including 'conscience') **are carefully woven** into the **apparatus of** the **various doctrines** in which they feature. Rather than acting as a **trojan horse** that **dismantles** the doctrine from **within**, the reference to **morality** **facilitates** a **nuanced application** of the **factual elements**, and helps people understand what **attitude** is expected of them **in the circumstances addressed** by the doctrine. Indeed, when developing the law of Equity, we must keep in mind the possible friction between the conscionability standard and the idea that, if the law is to guide our behaviour, it must be clear, prospective, and

general. But given the significant benefits of keeping Equity as an independent vibrant body of law, we ought to find the best way to live with the tension, and give up on the attempts to remove it by marginalising Equity, or fusing it with the Common Law.

4. THEY LINK. Standards under law are equally uncertain.

Irit **Samet 18**, Professor in the Dickson Poon School of Law, “Equity’s Own Room,” Equity: Conscience Goes to Market, Oxford University Press, 2018, pp. 1–76

In sections 2 and 3 I pointed out what, in my view, are the great advantages of using open-ended, morally infused principles to solve disputes in which one party seeks to exploit the rule-like nature of the Common Law to secure an illicit benefit. In the present section I want to go back to the question of the price we pay for doing so. I want to show that given the picture I drew of Equity’s modus operandi, and how the concept of conscience is to be interpreted, the dent it makes in the system’s ROL score is much less dramatic than the critics of Equity suggest. When the Court of Equity ‘interposes . . . according to conscience’ it allegedly employs a mode of legal reasoning which manufactures results that are less predictable, less clear, and more prone to errors in horizontal justice (i.e. treating like cases alike) than the bright-line rules of its Common Law counterpart.²⁷⁴ However, a closer look at the ROL desiderata reveals that the ability of formal legal norms to promote and preserve the value which underlies the ROL ideal is actually more limited than those who swear by the slogan ‘ROL is rule of rules’ care to admit. The principles-based Equity, I want to show, is actually an ally, at least, of the fundamental values that animate the ROL ideal.

First, we should note that some significant areas of the Common Law itself are notoriously in breach of the ROL desiderata. As Benjamin Zipursky shows in the context of tort law, vague standards of ‘reasonableness’, ‘duty of care’, or ‘mitigation’ turn this area into a nightmare for adherents of a Fullerian ROL concept.²⁷⁵ In contrast to Fuller, Zipursky insists that the corpus of tort is no less ‘a law’ for this failure. For tort law has its own ‘inner morality’, i.e. its own ways of protecting the defendant from state-sponsored arbitrariness: the jury (in the US), the way in which liability is anchored in a specific injury to a specific person, and the ability to insure against it, are just some of the means to preserve this morality. Yet, the continuing existence of pockets of Common Law which score badly on the ROL chart does not deflect the Chancellor’s foot critique. The relevant comparison is really between the open-ended standards typical of Equity and solid clear rules such as those found in the Common Law of property and contract. And since these are the norms which mostly get displaced by Equity, it is them (and not the law of tort) we should focus on when examining the merits of Equity’s interventions. The argument that much of tort law, as well as some other standards scattered across Common Law, blare the difference between it and Equity is unconvincing for another reason: the next section argues that whereas many vague common law standards are seen as ‘inchoate’, i.e. as waiting to be clarified by the courts so as to achieve the coveted status of ‘rules’, the standards of Equity are inherently vague, viz. there is no expectation that as time goes by the application of Equity’s standards will become substantially more predictable. The tension between Equity and formalism that is justified on ROL grounds is therefore inbuilt, not a passing episode in the life of the norm. It is, however, a tension we should learn to live with, not one that threatens the integrity of the system; or so I argue in the final sections of this chapter.

5. ACCUMULATION. As rulings build up, audiences can easily discern the principle.

Brooks M. **Chupp 22**, J.D. Candidate, Notre Dame Law School, 2023, “‘A Sword in the Bed’: Bringing an End to the Fusion of Law and Equity,” 98 Notre Dame L. Rev. 465, <https://scholarship.law.nd.edu/ndlr/vol98/iss1/8>

Furthermore, equity is not an easy area of justice to define, which makes it all the harder for generalist judges to understand and apply it fairly. This is not made any easier to answer by the substantial overlap between equity and law.¹²⁰ States which retain specialty courts of chancery build up a corpus of opinions by the chancellors that provide even nonspecialist appellate judges and justices with a substantial number of equitable analyses to which they can refer when ruling on matters of law pertaining to equity.¹²¹ The value of creating specialty courts to deal with particularly intricate or specialized areas of the

law is **not lost** on the **governments** of the **United States** or the individual states, **as** the existence of **probate, bankruptcy, and tax courts** can **attest to**, to name but three.

6. NET BENEFIT SOLVES. Generic uncertainty arguments are about applying equitable remedies within a **broader framework** that **fuses equity with law**. But the CP's precedent **separates** them, which **restores regularity** to equitable remedies.

Brooks M. **Chupp 22**, J.D. Candidate, Notre Dame Law School, 2023, "'A Sword in the Bed' : Bringing an End to the Fusion of Law and Equity," 98 Notre Dame L. Rev. 465, <https://scholarship.law.nd.edu/ndlr/vol98/iss1/8>

Ideally, any **defects** in a **merger** enacted via a code of civil procedure could be **mitigated** by **careful work** by **judges**, but the **very nature of merger** makes this a **difficult task**.¹²⁷ The **advantage** to having **separate** courts of **equity and law** is that it **allowed** certain **judges** (that is, chancellors) to **specialize** in equity. Why is specialization important? Because **equity was** **not** historically **the same as** the common **law**, but was **guided** by **"traditional principles of equity"** which the Supreme Court has affirmed must still govern how American judges dispense equity today.¹²⁸ These "traditional principles" were developed and **honed** through cases back through the establishment of the English Court of Chancery in the **1300s**. It is **only through** the **rigorous understanding** and **application** of these principles that **equity can avoid subsuming the law** and **rendering "the whole legal system ... incertain"**.¹²⁹ Joseph Story, in his seminal treatise on equity, expressed this very concern. Story argued that, in order to **avoid** "an **arbitrary discretion** in the **courts**, it is **indispensable** that they should be **bound** down by **strict rules** and **precedents**."¹³⁰ Alexander Hamilton sought to assuage such concerns by pointing out that **equity** courts were meant to give relief primarily "in extraordinary cases."¹³¹ He further argued that **equity was no longer the freewheeling field** of law that **it was** in its **youth**, **as** "the **principles** by which that relief is **governed** are now **reduced to a regular system**."¹³²

However, the **transformation of each trial court judge into a chancellor** places a **great** deal of **strain on these restraints**. Consider the now-controversial case of the "universal" or "nationwide" injunction, i.e., an injunction restraining the defendant's behavior against the whole world, not merely the plaintiff. Such an injunction did not exist under the principles established by the English court of chancery.¹³³ And yet, these injunctions are issued with frightening regularity, especially when it comes to enjoining the federal government from enacting some manner of policy that touches upon a political flash point.¹³⁴ The extreme willingness of federal courts to issue such broad-based injunctions has encouraged the practice of forum-shopping,¹³⁵ lending a substantial weight to the concerns of English lawyer John Selden, who once decried equity for the inherent arbitrariness between different chancellors' personal standards:

Equity is a roguish thing: for law we have measure, know what to trust too. Equity is according to ye conscience of him that is Chancellor, and as it is larger or narrower so is equity. 'Tis all one as if they should make the standard for the measure we call a foot, a Chancellor's foot; what an uncertain measure would be this. One Chancellor has a long foot another a short foot, a third an indifferent foot; 'tis the same thing in the Chancellor's Conscience.¹³⁶

Justice Story further noted that, **if judges sitting in equity** were to **discard prior precedents** and **limiting principles**, it would **"literally place the whole rights and property of the community under the arbitrary will of the judge"**, acting, if you please, **arbitrio boni judicis**, ... according to his own notions and

conscience; but still acting with a **despotic** and **sovereign authority**.”¹³⁷ If questions of **equity** were given **not** to **judges** acting as **part-time** chancellors, but rather to **experts** in the field of **equity**, one imagines that **thorny issues** like the nationwide in-junction **would be handled with greater elegance** and **thought**.

More fundamental than the concern that judges may not understand equity well enough to apply it within its appointed bounds is the question of what those bounds even are. In *Liu v. SEC*, the Supreme Court was presented with the question of whether disgorgement was an equitable power allowed to federal courts under *Grupo Mexicano*.¹³⁸ The Court held that it was, on the grounds that even though disgorgement called as such had only appeared relatively recently, the idea of forcing a wrongdoer to give up profits that he had gained through inequitable behavior was substantially older.¹³⁹ The Court held that the restriction on this remedy was not in its type, but in its scope.¹⁴⁰ But the Court was not unanimous in so holding. Justice Thomas, the lone dissenter, argued that disgorgement was purely an invention of the twentieth century, and that it was too vague to even plausibly be a “traditional equitable remedy.”¹⁴¹ He proceeds by noting that courts’ use of the term “disgorgement” changed over time, starting as a “colloquial[]” reference to what they were ordering defendants to do and eventually becoming a discrete judicial remedy in its own right by the 1970s.¹⁴² Justice Thomas emphasizes that his opinion is based on the same concerns that Founding-era critics of equity raised.¹⁴³ It is perhaps telling that one of the precedents on which the court relies notes the substantial overlap between remedies at law and remedies at equity, and hence the importance of making it clear which is which.¹⁴⁴

Roscoe **Pound** felt that equity began to become **“decadent”** when it was subjected to “the common law theory of **binding precedents** and resulting **case-law equity**.”¹⁴⁵ Pound thought that the **point** of equity was to **escape** the **“mechanical”** nature of the operation of law, and the introduction of the Field Code was simply the coup de grâce on the idea of equity as a separate doctrine, formalizing equity’s **subjugation** to the mechanical aspects of common law.¹⁴⁶ Pound therefore considered the Field Code an unqualified good, because without any of the beneficial aspects of equity left, arguing “against the fusion of law and equity to-day is no less futile than were the ponderous arguments of the sixteenth century sergeant-at-law who inveighed against chancery in his ‘replication’ to Doctor and Student.”¹⁴⁷ However, these facts could be interpreted equally to weigh in the opposite direction: **if “[l]aw must be tempered with equity,”** why would it not make **equal** sense to **“fight for equity”** within the current system **instead of surrendering** to Pound’s so-called decadence?¹⁴⁸

IP Ethics NB---2NC

Normative IP rights are currently concerned with technological solutions and innovation with no concern on its downsides---that continually escalates AI, nuclear, and bioweapons toward a high risk of causing extinction---AMR diseases prove, if ethics were involved in antibiotic production, there could have been legislative foresight to prevent it---that's Ruse-Khan.

That turns the case---[**explain**].

The counterplan solves---rooting IP in equity instead of law concerns the question of its negative effects toward individuals instead of solely innovation despite the cost.

We get infinite condo---dispo is bad:

1. ARBITRARINESS---the rez doesn't say 'kick only when perm'---negation is the only predictable burden. If that doesn't matter, counter-interp we get condo in [**this specific round**].
2. NEG FLEX---infinite squo IP reform thumps AND vague topic makes anything T.
3. RESEARCH---fallback incentivizes testing new positions.
4. UTILITY CHECKS---cross-applying deficits makes proliferating CPs unstrategic.
5. SKEW INEVITABLE---T, framework Ks, DAs, speed.
6. CONTROL---dispo lets the 2A pick the 2NR which links to all offense.
7. SOLVENCY---we'll force perms or theory via world peace planks.

Advantage CP

Solvency---2NC

The counterplan solves the case---it frees Guantanamo prisnoers which allows them to file copyright. The net benefit is commodification. The 2AC to the DA answered it by saying that their ethical system demands placing the other first. The CP does that, while also preventing infringments on free will.

DA---Kant

Commodification---Impact---2NC

The plan is a morally bankrupt enforcement of invisible and unjust property rights---that's Kinsella. The only ethical basis for a government intervention in property rights is to prevent social conflict over scarce resources by empowering the owner control over their claim---IPR protection is an overt violation because ideas and inventions are not tangible property---citizens can create [plan's IP] but it does not deprive them of it for other citizens to have access to it.

The impact is government sanctioned theft---unfair allocation of property rights is akin to having no property rights at all---it's once again the powerful controlling the resources despite moral obligations not to. This empowers individuals to invade rights of others because tangible property owners have to give partial ownership to the creator.

Link---AT: Not Under Levinas---2NC

Yes under Levinas:

1. Counterplan solves offense. The Other is put first, then we can prioritize common rights.
2. The aff harms the other---infringes on the rights of other Guantanamo Bay detainees, as well as every other manifestation of the other like undocumented immigrants and nationals of other countries who won't be able to access their physical property post plan.

Deontology---AT: Kant Racist---2NC

1. No link:

a. Never endorsed Kant---our metaethic is neo-Kantian deontology---it's a modern scholarly interpretation of specific parts of Kant with a better focus and interrogation of his racist viewpoints.

b. We can never result in racism---all humans classify as possibly reasoning beings---no grounds for discrimination.

2. Util's worse---was historically used by white elitists to justify killing minorities for the majority sake.

T---Pre-Existing